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CIVIL PROCEDURE CODE NOTES

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CIVIL PROCEDURE CODE

Q. “Civil Procedure is an adjective law”- Discuss. Discuss the difference between “adversary procedure” and “inquisitorial procedure”

Classification of law can be broadly distinguished on its substantive and adjective aspects. The substantive law qualifies as the legal framework which deals with the defining of the legal status, establishment of the rights and duties of citizens and its extent. However, the adjective law deals with the procedure involved in establishing these rights. The Civil Procedural Code, 1908 falls into this category of adjective law.

CPC is a collated code incorporating the various laws in its sphere but it is not exhaustive within it. Courts are to be guided by principles of equity and justice while dealing with scenarios for which the existing code may not be enough. Thus, the court’s ability to take such decisions is deemed necessary in its objective of preventing any miscarriage of justice. Various judgments in this regard can be to ascertain the aforementioned purpose of the code such as *Sangram Singh v. Election Tribunal* wherein the apex court discussed about the need for a more liberal understanding of CPC for justice to be delivered in its most apt manner.

Only through these adjective laws, the concept of fair trial and natural justice can be executed in reality and without these ideas in context; the court trial is deemed to be invalid and null.

Civil Procedural Code has been very important in the legal framework owing to its various procedural aspects as well as its objective of pursuing of an efficient justice system through fair trial, free provision of legal aid and speedy justice among other ideals. It can be concluded that these ideals are being properly followed through the innumerable efforts in the Code towards the objective of natural justice. The Code engendered various innovative measures to achieve its goal of speedy trials like that of arbitration and measures of settlement which helps reduce the backlog of cases and provides fair trial to people in a more efficient manner. Not only these, there are other forms of efforts being taken for fair trial to be followed in Indian Judicial process such as Open and Public trial. All the principles of appeal and review of decisions have been properly enshrined in the framework to create a robust system that is largely unflinching. The principles of natural justice have constantly been referred to and every amendment that have taken place clearly has been through such understanding.

Adversary Procedure V. Inquisitorial Procedure

Adversarial and inquisitorial systems of justice represent two different means of conducting trials with adversarial systems used in common law jurisdictions such as England and the inquisitorial system being prevalent in mainland Europe.

The adversarial system is based on the opposing sides acting as adversaries who compete to convince the judge and jury that their version of the facts is the most convincing. The lawyers are given free choice in terms of which issues are presented, what evidence to adduce in support of their submissions and what witnesses to call. The judge presides over the trial and rules on disputed issues of procedure and evidence, asking questions of the witness only to clarify evidence, and concludes the trial by summing-up the facts for the jury and advising them of the relevant law. It is not open to the judge in an adversarial system to enquire beyond the facts and evidence that are presented by the opposing lawyers; his role is largely passive; he is an impartial referee who advises the jury on matters of law.

This differs dramatically to the role of the judge in an inquisitorial system which is based, as the name suggests, on an inquiry into the case thus the judge is not limited to hearing the submissions of the parties but can direct the lawyers to address specific points or to call particular witnesses. The title of the presiding judge as '*juge d'instruction*' which translates as 'investigating magistrate' in the French criminal justice system gives in indication of the role of the judge in directing proceedings. Unlike the adversarial system, the role of the inquisitorial system is not to determine guilt or innocence of one particular person but to find the truth. As such, the judge, as investigating magistrate, conducts an inquiry that involves the questioning of witnesses and suspects, the issue of search warrants and an examination of the evidence with the aim of discovering both incriminating and exculpatory evidence. The prosecution and defence lawyers will keep a close eye on the judge's investigation and can request that he considers specific evidence or takes a particular course of action but the ultimate responsibility for the line of inquiry remains that of the judge. If, at the conclusion of the investigation, the judge decides that there is a case against a particular suspect, the matter will proceed to trial which will take an adversarial format.

An inquisitorial system involves a preliminary investigation conducted by an investigating magistrate as a means of seeking the truth. It is accepted that the adversarial system does not do this:

A trial does not involve the pursuit of truth by any means. the judge's role in that system is to hold the balance between the contending parties without himself taking part in their disputations. It is not an inquisitorial role in which he seeks himself to remedy the deficiencies of the case on either side (*R v Whithorn* (1983) 152 CLR 657 *per Dawson J* at 682).

Q. What do u understand by the phrase "Suite of Civil Nature"? "Cognizance is expressly or impliedly barred" – Explain this phrase.

Introduction: A litigant having a grievance of a civil nature has a right to institute a civil suit in a civil Court competent to hear and decide the matter unless its cognizance is either expressly or impliedly barred by any statute. (*Abdul Wahid Khan Vs Bhawani, AIR 1966 S.C.*) It is a fundamental principle of English law that whenever there is a right, there is a remedy. (*Ubi jus ibi remedium*)

The word "civil" relates to the community or to the policy and government of the citizens and subjects of a State. The word "civil" indicates a state of society reduced to order and regular government; as against "criminal" it pertains to private rights and remedies of men and also used in contradistinction to military, ecclesiastical, natural, or foreign.

Generally, civil action is an action wherein an issue is presented for trial, formed by averments of complaint and denials of answer; or replication to new matter; or an adversary proceeding for declaration, enforcement, or protection of a right or redressal or prevention of a wrong. It is a personal action which is instituted to compel payment, or doing of some other thing which is purely civil.

Civil proceeding includes, at least, all proceedings affecting civil rights which are not criminal. It is a proceeding in which some rights to property or other civil rights are involved, no matter whether the jurisdiction of the court is ordinary, special or extraordinary. If the proceeding is in aid of establishing a civil right or for disputing one, it would be a civil proceeding.

Meaning: According to Section 9 a Civil Court has jurisdiction to try a suit, when the following two conditions are satisfied:

i. the suit is of a Civil nature, and

ii. the cognizance of such a suit is neither expressly nor impliedly barred.

The word "civil" has not been defined in the Code. The word "civil" means "pertaining to the private rights and remedies of a citizen as distinguished from Criminal, political, etc." The expression "Civil Nature" is wider than the expression "Civil Proceedings". (**P.M.A. Metropolitan V M.M. Marthoma, AIR 1995 SC**) Thus a suit is of a civil nature if the private question therein relates to the determination of a civil right and enforcement thereof. It is not the status of parties to the "suit, but the subject matter of it which determines whether or not the suit is one of a civil nature. The expression is "suit of a civil nature will cover private rights and obligations of a citizen. Political and religious questions are not covered by that expression."

Explanation- 1 of 8.9 says that a suit in which the right to property or to an office is contested is a suit of a Civil Nature, notwithstanding that such right may depend entirely on the decision of questions as to religious rites or ceremonies.

Illustrations of suits of a civil nature: The followings are the illustrations of the suits of a 'Civil Nature'- Suits relating to right to property, right to worship, taking out of religious procession, right to share in offerings, suits for damages for civil wrong, for breach of contract, for a specific relief, for restitution of conjugal rights, for dissolution of marriage, for rent. for or on accounts; etc., etc.

But the *following are not suits of a civil nature:-*

Suits involving principally caste questions, purely religious rights or ceremonies, for upholding mere dignity or honour or for recovery of voluntarily payments or offerings.

Cognizance not barred: Court to try all civil suits unless barred 'The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred.'" (**Section 9**) The cognizance of a suit may be barred either expressly or impliedly.

Suits expressly barred: A suit is said to be "expressly barred" when it is barred by any enactment for the time being in force (**Umrao Singh V Bhagwan Singh, AIR 1956 SC**) by a competent Legislature, while keeping itself within the field of legislation and without contravening any provision of the constitution. Every presumption should be made in favour of the jurisdiction of the Civil Court and the provisions of the exclusion of the jurisdiction of a Court must be strictly construed. (**Abdul V Bhawani AIR 1966 SC**) It is well settled that a civil court has inherent power to decide its own jurisdiction. (**Bhatia Coop. Housing Society V D. C. Patel, AIR 1953 SC**)

The matters falling within the exclusive jurisdiction of the Revenue Courts or under the Criminal Procedure Code or the matters dealt with by special tribunals, under the relevant statutes; eg., Bar Council, Medical Council, University, Club etc., are expressly barred from the cognizance of a civil court.

b. Suits impliedly barred: A suit is said to be "impliedly barred" when it is barred by general principle of law. Where an Act creates an obligation and enforces the performance in a specified manner, that performance cannot be enforced in any other manner, e.g., certain suits of a civil nature are barred from the cognizance of a Civil Court on the grounds of public policy. (**Premier Automobiles V K. S. Wadke, AIR 1975 SC**) Thus, no suit shall lie for recovery of costs incurred in Criminal prosecution or for enforcement of a right upon a contract hit by Section 23 of Indian Contract Act, 1872 or against any Judge for acts done in the course of his duties. A Civil court has no jurisdiction to adjudicate upon disputes of political nature.

Q. What is plaint? What are the contents of plaint? Discuss Written Statement.

Order VII of the Code of Civil Procedure deals with plaint. Plaint is basically the pleading of the petitioner in a civil suit. There are certain general principles that are applicable to pleadings and therefore implicitly to plaint also. They are:

- **Only facts** have to be stated and not law;
- The facts stated should be **material facts**;
- **No evidence** should be stated;
- The facts should be stated in a **concise**, brief and clear manner.

However, there are certain exceptions to the general principles, like the foreign law if used in the case has to be stated, also if there is any condition precedent for filing the suit or any mixed question of law and fact (e.g. *Res Judicata*) or any custom or usages etc., have to be stated.

Plaint: The expression 'plaint' has not been defined in CPC. However, it can be said to be a statement of claim, a document, by presentation of which a suit is instituted. Its object is to state the grounds upon which the assistance of the court is sought by the plaintiff. It is a pleading of the plaintiff. **(O. VI, R. 1)**

Essentials of a PLAINT

Pleading refers to plaint and written statement. In plaint, plaintiff should allege facts about his cause of action. In fact, plaint consists of some contents, and it is mandatory that such contents should be present in plaint. **Order 7 Rule 1 of CPC lays down that a plaint must contain the following particulars:-**

1. Plaint should contain name of that court in which suit is brought.
2. Plaint should contain name, description and residence of plaintiff.
3. Plaint should contain name, description and residence of defendant.
4. When plaintiff or defendant is minor or person of unsound mind, plaint should contain a statement to that effect.
5. Plaint should contain those facts, which have constituted cause of action. In addition to this, it should also be described in plaint when cause of action has arisen.
6. Plaint should contain those facts, which show the court has jurisdiction.
7. Plaint should contain that relief, which plaintiff claims.
8. When plaintiff has allowed set off or has relinquished a portion of his claim, plaint should contain that amount, which has been so allowed or so relinquished.
9. Plaint should contain statement of value of subject-matter of suit not only for purpose of jurisdiction, but also for purpose of court-fees.
10. Plaint should contain plaintiff's verification on oath.

In some specific cases, in addition to the above, the plaint should contain the following specific particulars also:-

1. If the suit is for recovery of money, the plaint should contain the exact amount claimed. If the suit is for mesne profit, or for an amount which will be due on taking accounts, or a debt the value whereof cannot be estimated with reasonable diligence, the approximate amount may be stated instead of the exact amount.
2. If the suit is for immovable property, the plaint should contain a proper description sufficient to identify such property along with boundaries, survey numbers, etc., wherever possible;
3. Where the plaintiff files a suit of a representative character, the plaint must show not only that he has an actual existing interest in the subject matter of the suit, but also that he has taken the necessary steps to enable him to file such a suit;
4. If the suit is filed after expiry of the limitation period, the plaint must state the ground on which exemption from the law of limitation is claimed;
5. Where the plaintiff seeks relief in respect of several distinct claims or causes of action founded on separate and distinct grounds, they should be stated separately and distinctly.
6. The plaint must state specifically the relief claimed by the plaintiff, either simply or in the alternative.

Written Statement (Order VIII)

Meaning: A Written Statement is a pleading of the defendant for submission of every material fact to answer the allegation made by the plaintiff in his plaint. The word has not been defined in the code, but the same may be defined as under:

A Written Statement is the pleading of the defendant wherein he deals with every material fact alleged by the plaintiff in his plaint and also states any new facts in his favour or takes legal objections against the claim of the plaintiff.

Preparation of Written Statement: All relevant rules of pleading apply to a Written Statement and it should be prepared with great caution. In the Written Statement firstly, the defendant should mention the name of the Court trying the suit, then the names of the parties. It is not necessary to mention the names, directions and place of residence of all the parties in the title of the Written Statement, but mentioning the name of the 1st plaintiff and 1st defendant is enough. The number of suit may be mentioned thereafter.

The defendant thereupon replies to each Para of the plaint except where any preliminary objection like maintainability of the suit, locus standi of the plaintiff to file suit, the non-joinder or misjoinder of parties as to the jurisdiction of the Court or as to limitation, for consideration which is necessary in the first instance before the suit is tried on merits.

Rules of Defence: The denial in a Written Statement must be specific and not general. The grounds alleged by the plaintiff must be denied by a defendant specifically with each allegation of fact of which he does not admit the truth, except damages. **(Order VII Rule 3)**

The denial should not be vague or evasive. Every allegation of fact in the plaint, if not denied specifically or by necessary implication, or stated to be not admitted in the pleading of the defendant, shall be taken to be admitted except as regards a person under disability. **(Order VII Rule 4)**

In cases where the defendant has not filed a pleading, it shall be lawful for the Court to pronounce judgment on the basis of the facts in the plaint except as against a person under disability, but the Court, in its discretion, may require any such fact to be proved. **[Order VII Rule 5(1)]** Whenever a judgment is pronounced under Rule 2, a decree shall be drawn up in accordance with such judgment. **[Order VII Rule 5(4)]**

Time to File Written Statement: The defendant shall file his Written Statement of his defence within 30 days from the date of service of summons on him, but the above time may be extended by the Court further for a period, which shall not be later than 90 Days from the date of service of summons. **(Kailash V. Nanku)**

Extension of time to Present Written Statement: Ordinarily the time schedule prescribed by Order VIII, Rule 1 has to be honoured. The extension of time sought for by the defendant from the Court whether within 30 days or 90 days, as the case may be, should not be granted just as a matter of routine and merely for the asking, more so, when the period of 90 days has expired.

The extension of time shall be only by way of exception and for reasons to be recorded in writing, howsoever brief they may be, by the Court.

Subsequent Pleadings (Order VIII Rule 9): According to Order VIII, Rule 9, no pleading subsequent to the Written Statement of a defendant other than by way of defence to set off or counter - claim shall be presented except by the leave of the Court, but the Court may, at any time require a Written Statement or additional Written Statement from any of the parties and fix a time of not more than 30 days for presenting the same.

Failure to present Written Statement: Where a party fails to file a Written Statement as required under Rule 1 or Rule 9 within a time permitted or fixed by the Court, the Court shall pronounce judgment against him or make such order as it thinks fit and on such judgment a decree shall be drawn up. The provisions regarding duty of defendant to produce documents upon which relief is claimed or relied upon by him have been given in Order VIII, Rule 1-A.

Q. Define Decree, Judgment and Order and distinguish between them. Write a note on “mesne profit”.

Decree: Section 2(2) of the Code defines Decree as – ‘Decree’ means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint and the determination of any question within section 144, but shall not include-

- a. any adjudication from which an appeal lies as an appeal from an order, or
- b. Any order of dismissal for default.

Explanation: A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final.

General Explanation of Decree: In simple words, decree is the speaking part of the judgment. Generally, Judgment consists of Decree, orders etc which are basically adjudicatory in nature.

Decree is of two types: Preliminary and Final. Courts have the power to grant both Preliminary as well as Final decree, depending upon the stage of the adjudication. Preliminary decrees are granted when there is a scope for further investigation on that point but it is also important to decide the issue at hand. On the other hand as the name suggests, final decrees are the conclusive part of the adjudication. Both Preliminary and final decree can be appealed before higher courts.

Essentials of a decree

- a. There must be formal expression of an adjudication;
- b. The adjudication must have been given in a suit before the court;
- c. The adjudication must have determined the rights of the parties with regard to all or any of the matters in controversy in the suit;
- d. Such adjudication must be conclusive.

Decree Holder: Section 2 (3) of the code defines Decree Holder as follows: 'Decree Holder', means any person in whose favor a decree has been passed or an order capable of execution has been made.

General Explanation of Decree holder: From the definition, it is clearly observed that a decree-holder need not be the plaintiff. A person who is not a party to the suit but an order capable of execution has been passed in his favour is also a decree-holder. Thus where a decree for specific performance is passed such a decree is capable of execution by the plaintiff as well as the defendant and therefore either of them can be decree-holder.

Satyawati v. Rajinder Singh and Anr. [(2013) 9 SCC 491]: A three-Judge Bench of the Supreme Court of India has observed that Decree Holders must enjoy the fruits of the decree obtained by them in an expeditious manner.

Judgment: Section 2 (9) of the Code defines the term Judgment as follows: 'Judgment' means the statement given by the Judge on the ground of a decree or order.

General Explanation of Judgment: A Judgment is a statement of the Judge based on the grounds of decree or order. An analysis of the whole grounds of the decree, when turned in a statement by a judge, is termed as Judgment. A judgment provides some rights and liabilities to the petitioner and the defendant. Every Judgment other than the court of small causes should contain the following:

- A concise statement of the case.
- The points for determination.
- The decision thereon.

- The reason for such decision.

Judgment Debtor: Section 2 (10) of the Code defines the term Judgment Debtor as follows: 'Judgment Debtor' means any person against whom a decree has been passed or an order capable of execution has been made.

General Explanation of Judgment Debtor: A party against which an unsatisfied court decision is awarded; a person who is obligated to satisfy the court decision. The term judgment debtor describes a party against which a court has made a monetary award. If a court renders a judgment involving money damages, the losing party must satisfy the amount of the award, which is called the Judgment debt. The losing party is called the Judgment Debtor. In other words, the losing defendant in a lawsuit who owes the amount of the judgment to the winning party is Judgment Debtor.

Order: Section 2 (14) of the Code defines the term Order as follows:

'Order' means the formal expression of any decision of a Civil Court which is not a decree.

General Explanation of Order: The adjudication of a court which is not a decree is an order. As a general rule, an order of the court of law is founded on objective considerations and as such the judicial order must contain a discussion of the question at issue and the reason which prevailed with the court which led to the passing of the order. An order should be a formal expression of any decision. The decision should be pronounced by the civil court. An order generally originated from any suit, it generally arises from a proceeding commenced on an application. An order may or may not finally determine the rights of the parties. An order is passed from a single suit.

Orders are of two kinds, appealable orders and non-appealable orders.

Order V. Decree

BASIS FOR COMPARISON	DECREE	ORDER
Meaning	A decree is the official proclamation of the adjudication by the judge explaining the rights of the parties concerned with respect to the suit.	An order is the official announcement of the decision taken by the court, defining the relationship of the parties, in the proceedings.
Pass	It is passed in a suit initiated by the presentation of a plaint.	It can be passed in a suit initiated by presentation of plaint, application or petition.
Deals with	Substantive legal rights of the parties	Procedural legal rights of the parties

Defined in	Section 2 (2) of the Code of Civil Procedure Act, 1908.	Section 2 (14) of the Code of Civil Procedure Act, 1908.
Ascertainment of rights	It clearly ascertains the rights of the parties concerned.	It may or may not clearly ascertains the rights of the parties concerned.
Number	There is only one decree in a suit.	There can be many orders in a suit.
Type	It can be preliminary, final or partly preliminary and partly final.	It is always final.
Appeal	It is normally appealable except if it is specifically barred by law.	It can be appealable or non-appealable.

Judgment v. Decree

As to Execution: It is the decree or order which is capable of execution and not the Judgment.

Form: Decree and order always follow the Judgment while the Judgment contains the grounds of both

Superiority: Judgment is superior in form and if decree or order is not in accordance with it, they may be altered.

Appeal: It is the decree or orders which is appealable and not the judgment.

Kinds: Decree and order has different kinds but that is not a case with the judgment.

MESNE PROFIT

Section 2(12) states that "Mesne Profits" of property means those profits which the person in wrongful possession of such property actually received or might with ordinary diligence have received therefrom, together with interest on such profits, but shall not include profits due to improvements made by the person in wrongful possession.

The owner of property or any other person who is entitled to have possession of property has a right to the possession of his property and when such person is deprived of such a right by any other person, then he is entitled not only to receive back possession of that property but also to damages for wrongful possession from that person.

The mesne profits are compensation, which is penal in nature. A decree for mesne profits is to compensate the person who has been kept out of possession even though he was entitled to possession thereof.

Against whom Mesne profits can be claimed?

The mesne profits can be claimed with regard to immoveable property only. Generally, person in wrongful possession and enjoyment of immoveable property is liable for mesne profits. (**Lucy V. Mariappa, AI R 1979 SC**).

A decree for mesne profit can be passed against a trespasser or a person against whom a decree for possession is passed, or against a mortgagee in possession of property even after a decree for redemption is passed or against a tenant holding over at will after a notice to quit has been served him.

To ascertain and provide mesne profits it is not what the plaintiff has lost by being out of possession but what the defendant gained or might reasonably and with ordinary prudence have gained by such wrongful possession. Since interest is an integral part of mesne profits, it has to be allowed in the computation of mesne profits itself. (**Mahant narayan Dasjee V. Tirupathi Devasthanam, AIR 1965 SC**)

Q. Define summons. What are the modes of service of summons? Discuss the procedure for the service of the summons in special cases. What are the substituted modes of service of Summons?

Meaning: The word summons has not been defined in the Code, but according to the dictionary meaning; "A summons is a document issued from the office of a court of justice, calling upon the person to whom it is directed to attend before a judge or office of the court for a certain purpose."

Essentials of summons: Every summons shall be signed by the judge or such officer appointed by him and shall be sealed with the seal of the court [**Order V Rule1 (3)**] and every summons shall be accompanied by a plaint or if so permitted, by a concise statement thereof. [**Order V Rule 2**]

Contents of Valid Summons:

- a. The summons must contain a direction whether the date fixed is for settlement of issues only or for final disposal of the suit (**Order V Rule 5**).
- b. In cases of summons for final disposal of the suit, the defendant shall be directed to produce his witnesses (**Order V Rule 8**).
- c. The Court must give sufficient time to the defendant to enable him to appear and answer the claim of the Plaintiff on the day fixed (**Order V Rule 6**).
- d. The summons shall contain an order to the defendant to produce all documents in his possession or power upon which he intends to rely on in support of his case (**Order V Rule 7**).

Summons to Defendant: Section 27: Where a suit has been duly instituted, a summon may be issued to the defendant to appear and answer the claim and may be served in the manner prescribed on such day not beyond 30 days from the date of the institution of the plaint.

Order V: Rule 1 (1): When a suit has been duly instituted, a summon may be issued to the defendant to appear and answer the claim and to file the written statement of his defence, if any, within thirty days from the date of the service of the summons on that defendant;

Provided that no such summon shall be issued when a defendant has appeared at the presentation of Plaintiff and admitted the plaintiff's claim.

Provided further that where the defendant fails to file the written statement within the said period of thirty days, he shall be allowed to file the same on such other day as may be specified by the Court, for reasons to be recorded in writing, but which shall not be later than ninety days from the date of service of summons.

Appearance of Defendant [Order V Rule 1 (2)]

Rule 1(2) - A defendant to whom a summons has been issued under sub-rule (1) may appear.

- a. in person, or
- b. by a pleader duly instructed and able to answer all material questions relating to the suit, or
- c. by a pleader accompanied by some person able to answer all such questions. The Court, however, may order the defendant or plaintiff to appear in person (Rule 3).

Rule 1 (3): Every such summons shall be signed by the judge or such officer as he appoints, and shall be sealed with the seal of the Court.

Exemption from Personal Appearance : Order V Rule 4

No party shall be ordered to appear in person

- 1. unless he resides a. within the local limits of the Court's ordinary original jurisdiction, or b. without such limits but at a place less than fifty or (where there is railway or steamer communication or other established public conveyance for five-sixths of the distance between the place where he resides and the place where the Court is situated) less than two hundred miles distance from the Court-house. Or
- 2. Who is a woman not appearing in person (Section 132), or
- 3. Who is entitled to exemption under the Code (Section 132).

Modes of Service of Summons

Under Civil Procedure Code, following are modes of service of summons have been described;

1. Postal Service: Under **Order 5 Rule 10-A** of CPC, a copy of summons would be sent by registered post.

Effect: A postal service is deemed to be effect;

- (i) When defendant signs acknowledgement, or
- (ii) Postal employee endorses, that defendant refuses to take delivery.

2. Personal Service of Summons: Wherever it is practicable, service of summons should be made on defendant in person. This is also called direct service so far as practicable service should be made on the defendant in person. Service is made by delivering a copy of the summons to the person concerned or to his agent and by obtaining his signature on the other copy.

(i) *Service upon person of defendant:* Order 5 Rule 10, when summons is served on person of defendant, it should be signed by judge or officer of court and should be sealed with seal of court.

(ii) *Service on agent of defendant:* Summons may be served upon the agent of defendant

(ii-a) *Empowered agent*: The personal service made to the agent of the defendant, empowered to accept service shall be sufficient.

(ii-b) *Business of Defendant*: If some person does not reside within jurisdiction of court, but carries on some business or works thorough manager or agent, and suit is filed against this person and in relation to this business or work, summons can be served on such manager or agent.

(iii-c) *Immoveable Property of Defendant*: When suit is filed about immoveable property, and summons cannot be served on defendant or defendant has not empowered any agent to accept service of summons, summons can be served on that agent of defendant, who is in charge of such immoveable property.

(iii-d) *Service on male member of Defendant's Family*: If defendant cannot be found or defendant has not empowered any agent to accept service of summons, summons can be served on any of adult members of defendant's family. However, summons can only be served on that member, who resides with defendant. Here servant is not considered as member of defendant's family.

3. Service by Affixation: When personal service is failed to serve to the summons than summons may be served by service by affixation.

(i) Condition Required: Service by affixation can be made when following conditions are fulfilled.

(a) *Refusal by defendant to sign acknowledgement*: Service by affixation may be served, where the defendant or his agent or such other person to whom the summons may be served refuses to sign the acknowledgement.

(b) *Failure of serving officer to find defendant*: Where the serving officer after using all due and reasonable diligence cannot find the defendant, than service by affixation can be made due and reasonable diligence is depend on the facts of each case.

(ii) Manner of Affixation: The copy of summons should be actually affixed on the outer door or some conspicuous part of the house where defendant resides, carries on business or personally works for gain.

4. "Substituted Service" means the service of summons by a mode which is substituted for the ordinary mode of summons. The circumstances for the substituted service are:-

a. i) Where the defendant or his agent refused to sign the acknowledgement or

ii) Where the serving officer, after due and reasonable diligence cannot find the defendant, who is absent from his residence at the time when the service is sought to be effected on him at his residence and there is no likelihood of him being found at his residence within a reasonable time and there is no authorized agent nor any other person on whom service can be made, the serving officer shall affix a copy of the summons on the outer door or some other conspicuous part of the house in which the defendant ordinarily resides or carries on business or personally works for gain.

The serving officer shall then return the original to the Court from which it was issued, with a report endorsed thereon or annexed thereto stating the fact about affixing the copy, the circumstances under which to do so, and the name and address of the person (if any) by whom the house was identified and in whose presence the copy was affixed (Rule 17). If the Court is satisfied either on the affidavit of the serving officer or on his examination on oath that the summons has been duly served; or may make further enquiry in the matter as it thinks fit, and shall either declare that the summon has been duly served or order such service as it thinks fit. (Rule19).

In the second mode as provided by Rule 17, the declaration by the court about the due service of the summons is essential. If the provisions of the Rule 19 have not been complied with, the service of summons cannot be said to be in accordance with law.

b. Where the Court is satisfied that there is a reason to believe that the defendant is avoiding the service of summons or for any other reason the summons cannot be served in the ordinary way, the Court shall order that the service may be effected in the following manner-

i. by affixing a copy of the summons in some conspicuous place in the court house; and also upon some conspicuous part of the house in which the defendant is known to have last resided, carried on business or personally worked for gain; or

ii. In such manner as the court thinks fit [(Rule 20(1)); or

iii. By an advertisement in the daily newspaper circulating in the locality in which the defendant is last known to have actually or voluntarily resided, carried on business or personally worked for gain [(Rule 20(1-A))].

Substituted service Under Rule 20 is as effective as personal service [(Rule 20(2)).

3) By Court: Rule 9 of Order V deals with delivery of summons by Court and states that in cases, where the defendant or his agent, empowered to accept the service of summons, resides within the jurisdiction of the Court in which the suit was instituted, the summons shall, unless the Court otherwise directs, be delivered or sent to the proper officer or to approved courier services to be served on the defendant.

Declaration by Court: The Court issuing the summons shall declare that the summons had been duly served on the defendant, where

a. the defendant or his agent had refused to take delivery of the postal article containing the summons or had refused to accept that summons by any other means specified in sub rule (3) when tendered or transmitted to him (**Order V, Rule 9(5)**), and

b. Where the summons was properly addressed, pre-paid and duly sent by registered post acknowledgment due, notwithstanding the fact that the acknowledgement having been lost or mislaid, or for any other reason, has not been received by the Court within 30 Days from the date of issue of summons. (**Proviso to Order V, Rule 9 (5)**)

4) By Plaintiff:(Order V, Rule 9) In addition to the provisions of rule 9, the Court, on the plaintiffs application may permit and deliver the summons to such plaintiff for service on the defendant and the provisions of rule 16 and 18 shall apply to a summons personally served under rule 9-A as if, the person effecting service were a serving officer.

Service of summons where defendant resides within jurisdiction of another Court: (Order V, Rule 21) A summons may be sent by the Court by which it is issued, whether within or without the State, either by one of its officers or by post or by such courier service as may be approved by the High Court, by fax message or by Electronic Mail service or by any other means as may be provided by the rules made by the High Courts to any Court (not being the High Court) having jurisdiction in the place where the defendant resides.(Order V, Rule 21)

Where a defendant resides outside the jurisdiction of the Court in which the suit is instituted, and the Court directs that the service of summons on that defendant may be made by such mode of service of

summons as is referred to in sub-rule (3) of rule 9 (except by registered post acknowledgement due), the provision of rule 21 shall not apply. **(Order V, Rule 9(4))**

Q. Who are necessary party and proper parties? Who maybe joined as plaintiffs and defendants?

Necessary and Proper Parties: A necessary party is one whose presence is indispensable to the constitution of the suit, against whom the relief is sought and without whom no effective order can be made. In the absence of a necessary party no decree can be passed, while a proper party is one in whose absence an effective order can be made, but whose presence is required for a complete and all decision on the question involved in the proceeding. In the absence of a proper party a decree can passed so far as it relates to the parties to the suit.

Example: In a petition for compensation in a road accident case, the claimant(s) may join three parties i.e. owner(s) of the vehicle(s) involved in the accident, the insurer(s) of the vehicle(s) and the driver(s) of the vehicle as respondents. The owner(s) and insurer(s), if any, are the necessary parties along with the claimant(s), while the driver(s) of the vehicle(s) involved is/are the formal/proper party whose presence enables the Court to adjudicate more "effectually and completely" but even in his absence the Court can as a decree.

Non Joinder or misjoinder of parties (Rule 9): Non joinder means not joining proper or necessary parties to the suits, while mis-joinder is a state of joining two or more persons (whether necessary or proper parties) as plaintiffs or defendants on one suit in contravention of rules 1 and rule 3 respectively. As a general rule, a suit shall not be dismissed only on the ground of non-joinder or mis-joinder of parties, except in a case of non-joinder of a necessary party.

Objections as to non joinder or misjoinder of parties: As has been provided in Rule 13 of Order I, all objections on the grounds of non-joinder or mis-joinder of parties shall be taken at the earliest possible opportunity and, in all cases in which issues are settled, at or before such settlement, unless the ground of objection has subsequently arisen, and any such objection not so taken shall be deemed to have been waived.

Addition or substitution of plaintiff [Rule 10 (1)]: In a case where a suit has been instituted in the name of wrong person as plaintiff or where it is doubtful whether it has been instituted in the name of the right plaintiff, the court may at any stage of the suit, on the satisfaction of the following:

- i) that the suit has been instituted through a bona fide mistake, and
- ii) that it is necessary for the determination of the real matters in disputed, order any other person to be added or substituted as plaintiff upon such terms as the Court may think just.

Court may strike out or add parties: The court may at any stage of the proceedings, either upon or without the application of either party, and on such terms as may appear to the court to be just, order at the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all the questions involved in the suit, be added. **[Rule 10 (2)]**

No person shall be added as a plaintiff suing without a next friend or as the next friend of a plaintiff under any disability without his consent, i.e., no person can be added as a plaintiff without his consent.

On the addition of a defendant, the plaint shall unless the Court otherwise directs be amended and amended copies of the plaint shall be served on the new defendant and if required, on the original defendant. **[Rule 10 (4)]** All proceedings as against any person added as defendant shall be deemed to have begun only on the service of the summons. **[Rule 10 (5)]**

Q. Discuss the concept of jurisdiction and discuss the various classes of jurisdiction. What do you mean by ousting of jurisdiction of civil courts? Discuss with suitable illustrations.

Jurisdiction means power of a Court to hear and decide a case. Jurisdiction of a Court means the power or the extent of the authority of a Court to hear and determine a cause, to adjudicate and exercise any judicial power in relation to it. The Jurisdiction of a Court means the extent of the authority of a Court to administer justice prescribed with reference to the subject matter, pecuniary value or local limits, **Raja Soap Factory v S.P. Shantharaj, AIR 1965 SC.**

Consent of Parties: It is well settled principle of law that consent cannot confer nor take away jurisdiction of a Court. If the Court has no inherent jurisdiction, neither acquiescence nor waiver nor estoppels can create it. But if two or more Courts have jurisdiction to try the suit, the parties may agree among them that the suit should be brought in one of those Courts and not in other, since there is no inherent lack of jurisdiction in the Court.

The defect of jurisdiction cannot be cured by consent of parties and the judgment or order passed by a Court, however precisely certain and technically correct, is null and void and its invalidity could be setup whenever and wherever it is sought to be enforced or relied upon, even at the stage of execution and even in collateral proceedings.

"A defect of jurisdiction strikes at the very authority of the Court to pass any decree, and such a defect cannot be cured even by consent of parties." **Kiran Singh V Chaman Paswan AIR 1954 SC**

Decision as to jurisdiction: Whenever the jurisdiction of the Court is challenged, the Court has inherent jurisdiction to decide the said question, **Bhatia Coop. Housing Society V D.C. Patel, AIR 1953 SC.** The allegations made in plaint to decide the forum and the jurisdiction does not depend upon the defence taken by the defendants in the written statement, **Abdulla Vs Golappa, AIR 1985 S.C.**

The rationale behind introducing the concept of jurisdiction in law is that a court should be able to try and adjudicate only in those matters with which it has some connection or which fall within the geographical or political or pecuniary limits of its authority. In 1921 Calcutta High Court judgment in the case of **Hriday Nath Roy v. Ram Chandra** sought to explain the meaning of the term 'jurisdiction' in a great detail. The bench observed:

'An examination of the cases in the books discloses numerous attempts to define the term 'jurisdiction', which has been stated to be 'the power to hear and determine issues of law and fact;' 'the authority by which three judicial officers take cognizance of and decide cause;' 'the authority to hear and decide a legal controversy;' 'the power to hear and determine the subject-matter in controversy between parties to a suit and to adjudicate or exercise any judicial power over them;' 'the power to hear, determine and pronounce judgment on the issues before the Court;' 'the power or authority which is conferred upon a Court by the

Legislature to hear and determine causes between parties and to carry the judgments into effect;’ ‘the power to enquire into the facts, to apply the law, to pronounce the judgment and to carry it into execution.’

Types of Jurisdiction: In India, there are mainly 5 types of jurisdiction which can be classified as follows:

- **Subject-matter jurisdiction:** It can be defined as the authority vested in a court of law to try and hear cases of a particular type and pertaining to a particular subject matter. For example, District Forums established under the Consumer Protection Act, 1986 have jurisdiction over only consumer-related cases. It cannot try criminal cases.
- **Territorial jurisdiction:** Under this type of jurisdiction, geographical limits of a court’s authority are clearly delineated and specified. It cannot exercise authority beyond that territorial/geographical limit. For example, if a certain offence is committed in Madhya Pradesh, only the courts of law within the boundaries of Madhya Pradesh can try and adjudicate upon the same unless otherwise provided for in a particular piece of legislation.
- **Pecuniary jurisdiction:** Pecuniary means ‘related to money’. Pecuniary jurisdiction tries to address whether a court of law can try cases and suits of the monetary value/amount of the case or suit in question. For example, consumer courts have different pecuniary jurisdictions. A district forum can try cases of value up to Twenty lakh rupees only.
- **Original jurisdiction:** It refers to the authority of a court to take cognizance of cases which can be tried and adjudicated upon in those courts in the first instance itself. It is different from appellate jurisdiction in the sense that in case of the latter, the courts rehear and review an already decided matter whereas in case of the former the cases are tried for the very first time. For example, the High Court of Allahabad has original jurisdiction with respect to matrimonial, testamentary, probate and company matters.
- **Appellate jurisdiction:** It refers to the authority of a court to rehear or review a case that has already been decided by a lower court. Appellate jurisdiction is generally vested in higher courts. In India, both the High Courts and the Supreme Court have appellate jurisdiction to hear matters which are brought in the form of appeal before them. They can either overrule the judgment of the lower court or uphold it. At times they can also modify the sentence.

Some of the other types of jurisdiction include:

- **Concurrent jurisdiction:** A situation in which more than one court of law has the jurisdiction to try certain matters. Sometimes, this type of jurisdiction is also referred to as ‘co-ordinate jurisdiction’.
- **Admiralty jurisdiction:** Jurisdiction pertaining to mercantile and maritime law and cases.
- **Probate jurisdiction:** Matters concerning the administration of an estate belonging to a dead person and its guardianship come under probate jurisdiction. For example, cases involving administration and execution of the will of a deceased person.
- **Summary jurisdiction:** It refers to the authority of a court to try matters in accordance with the summary procedure. Such cases take form of summary trials in order to speedily resolve a dispute.

Ouster of jurisdiction by consent

Section 28 of the Contract Act (quoted in Appendix A) provides that agreements in restraint of legal proceedings are void. Section 23 inter alia provides that agreement of which the object or consideration is opposed to public policy is void.

However, if two or more courts have got territorial jurisdiction to entertain a suit then ouster of jurisdiction of one of the two courts or some of the several courts is permissible by agreement. What is prohibited is total exclusion. If a suit may be instituted at place A and B then parties may agree that it would be instituted only either at place A or place B. Such agreement would be perfectly legal, and not against public policy under Section 23 of Contract Act.

The first leading authority of the Supreme Court on the point is reported in **Hakam Singh v. Gamon (India) Ltd., AIR 1971 SC 740**, wherein it was held as follows:-

"It is not open to the parties by agreement to confer by their agreement jurisdiction on a court which it does not possess under the Code. But where two courts or more have under the C.P.C. jurisdiction to try a suit or proceeding on agreement between the parties that the dispute between them shall be tried in one of such courts is not contrary to public policy. Such an agreement does not contravene Section 28 of the Contract Act"

In the case of **Harshad C.L. Modi** the facts were that suit for specific performance of an agreement for sale in respect of an immovable property situated in Gurgaon (Haryana) was instituted at Delhi and in the agreement also it was mentioned that suit could be filed only at Delhi. The Supreme Court held that in view of Section 16 C.P.C. as the property was situated at Gurgaon, hence, only Gurgaon court had jurisdiction and Delhi Court had absolutely no jurisdiction to entertain the suit. It was further held that the agreement that suit should be filed at Delhi was void as under an agreement jurisdiction cannot be conferred upon a court which otherwise has got no jurisdiction.

Sometimes it is mentioned in the agreement that any dispute should be subject to the jurisdiction of one of the courts where suit may be instituted and the clause is qualified by the words like 'only', 'alone' or 'exclusively'. However, even if such words are not used still if the intention may be gathered from the agreement and its working then the jurisdiction of other courts would be barred.

In **A.B.C. Laminart Pvt. Ltd. v. A.P. Agencies, AIR 1989 SC 1239** it was held as follows: As regards construction of the ouster clause when words like alone, only, exclusive and the like have been used there may be no difficulty. Even without such words in appropriate case the maxim *expressio unius est exclusio alterius* - expression of one is the exclusion of the other - may be applied. What is an appropriate case shall depend on the facts of the case

Q. Discuss the law relating to the place of suing under the code of Civil Procedure.

PLACE OF SUING (SECTION 15 TO 20)

The first and the important thing is the place of suing in order that a Court can entertain, deal with and decide a suit. Section 15 to 20 of C.P.C. regulate the forum for the institution of suits.

Rules as to forum: The rules as to forum can be discussed under the following two heads

a. Rules as to pecuniary jurisdiction: The rule about the pecuniary jurisdiction is that the "Every suit shall be instituted in the court of the lowest grade competent to try it." (**Section 15**)

The above rule is one of procedure only and not of jurisdiction and therefore, exercise of jurisdiction by a Court of higher grade than is competent to try the suit is mere irregularity covered by section 99 and the decree passed by the Court is not nullity while the exercise of jurisdiction by a Court of lower grade than the one which is competent to try it, is a nullity as being without jurisdiction.

b. Rules as to nature of the suit: Suits may be divided into three classes Suits in respect of immoveable property,- section 16 to 18

ii. Suit for compensation for wrong (for torts) to person or movable property,- Section 19, and

iii. Suits of other kinds, - section- 20.

1) Suits in respect of immoveable property: Sections 16 to 18 deal with suits relating to immoveable property.

Suits to be instituted where subject-matter situate (Section 16): Section 16 provides as Subject to the pecuniary or other limitations prescribed by any law, suits for the recovery of immoveable property with or without rent or profits.

a. for the partition of immoveable property;

b. for foreclosure, sale or redemption in the case of a mortgage of or charge upon immovable property;

c. for the determination of any other right to or interest in immovable property;

d. for compensation for wrong to immovable property,

e. for the recovery of immovable property actually under distraint or attachment, shall be instituted in the Court within the local limits of whose jurisdiction the property is situated.

Provided that a suit to obtain relief respecting, or compensation for wrong to, immoveable property held by or on behalf of the defendant may, where the relief sought can be entirely obtained through his personal obedience be instituted either in the Court within the local limits of whose jurisdiction the property is situate, or in the Court within the local limits of whose jurisdiction the defendant actually and voluntarily resides, or carries on business, or personally works for gain.

Explanation: In this section "property" means property situated in India.

Suits for immoveable property situate within jurisdiction of different courts: Section 17 provides as "Where a suit is to obtain relief respecting, or compensation for wrong to, immoveable property situated within the jurisdiction of different Courts, the suits may be instituted in any Court within the local limits of whose jurisdiction any portion of the property is situated."

Provided that, in respect of the value of the subject matter of the suit, the entire claim is cognizable by such Court.

Place of institution of suit where local limits of jurisdiction of Courts are uncertain: Section 18 provides as

1. Where it is alleged to be uncertain within the local limits of the jurisdiction of which of two or more Courts any immoveable property is situated, anyone of those Courts may, if satisfied that there is ground for the alleged uncertainty, record a statement to that effect and thereupon proceed to entertain and

dispose of any suit relating to that property, and its decree in the suit shall have the same effect as if the property were situated within the local limits of its jurisdiction.

Provided that the suit is one with respect to which the Court is competent as regards the nature and value of the suits to exercise jurisdiction. **(Section 18 (1))**

2. Where a statement has not been recorded U/s 18(1), and the objection is taken before an Appellate Court or Revisional Court that a decree or order in a suit relating to such property was made by a Court not having jurisdiction where the property is situated, the Appellate Court or Revisional Court shall not allow the objection unless in its opinion there was, at the time of institution of the suit, no reasonable ground for uncertainty as to the Court having jurisdiction with respect thereto and there has been a consequent failure of justice. **(Section 18 (2))**

2) Suit for compensation for wrong to person or movable property: Section 19 provides as Where a suit is for compensation for wrong done to the person or to moveable property, if the wrong was done within the local limits of the jurisdiction of one Court and the defendant resides, or carries on business, or personally works for gain within the local limits of the jurisdiction of another Court, the suit may be instituted at the option of the plaintiff in either of the said courts.

Illustrations:

- a. A, residing in Delhi, beats B in Calcutta. B may sue A either in Calcutta or in Delhi.
- b. A, residing in Delhi, publishes in Calcutta statements defamatory of B, B may sue A either in Calcutta or in Delhi.

3. Suits for other kinds: Section 20 provides that Subject, to the limitations aforesaid, every suit shall be instituted in a Court within the local limits of whose jurisdiction

- a. the defendant, or each of the defendants where there are more than one, at the time of the commencement of the suit, actually and voluntarily resides, or carries on business, or personally works for gain, or
- b. any of the defendants, where there are more than one, at the time of the commencement of the suit, actually and voluntarily resides, or carries on business, or personally works for gains, provided that in such case either the leave of the Court is given, or the defendant who does not reside, or carry on business, or personally work for gain, as aforesaid, acquiesces in such institution; or c. the cause of action, wholly or in part, arises.

Explanation: A corporation shall be deemed to carry on business at its sole or principal office in India or in respect of any cause of action arising at any place where it has also a subordinate office, at such place.

Illustration:

1) A is a tradesman in Calcutta, B carries on business in Delhi. B, by his agent in Calcutta, buys goods of A and requests A to deliver them to the East India Railway Company. A delivers the goods accordingly in Calcutta. A may sue B for the price of the goods either in Calcutta, where the cause of action has arisen or in Delhi, where B carries on business.

2) A resides at Shimla, B at Calcutta and C at Delhi. A, B and C being together at Banaras, B and C make a joint Promissory note payable on demand, and deliver it to A. A may sue B and C at Banaras, where the

cause of action arose,. He may also sue them at Calcutta, where B resides, or at Delhi, where C resides; but in each of these case, if the non-resident defendant objects, the suit cannot proceed without the leave of the Court.

Q. What do you mean by a Representative Suit? What are necessary conditions for its application? Can a person take part in the proceedings of the suit without being a party?

Introduction: Order VIII, Rule 1 is an exception to the general rule that all persons interested in a suit ought to be joined as parties to it, in order to finally adjudicate all the matters involved therein and to avoid the fresh litigations over the same matters.

The rule is an enabling provision and neither compels anyone to represent many if, by himself, he has a right to suit nor vest a right of suit in a person and if he, by himself, has no right to sue, he cannot proceed to sue on behalf of others by invoking the aid of Order 1 Rule 8 C.P.C.

Meaning: Representative Suit may be defined as under "A representative suit is a suit filed by or against one or more persons on behalf of themselves and others having the same interest in the suit."

Who may sue or defend in Representative Capacity: (Order VIII Rule 1)

1) Where there are numerous persons having the same interests in one suit

a. One or more of such persons may, with the permission of the Court, sue or be sued, or may defend such suit, on behalf of, or for the benefit of, all persons so interested;

b. the Court may direct that one or more of such persons may sue or be sued, or may defend such suit, on behalf of, or for the benefit of, all persons so interested.

2) The Court shall, in every case where a permission or direction is given under Sub-rule (1), at the plaintiff expense, give notice of the institution of the suit to all persons so interested, either by personal service, or, where, by reason of number of persons or any other cause, such service is not reasonable practicable, by public advertisement, as the Court in each case may direct.

3) Any person on whose behalf, or for whose benefit, a suit is instituted or defended, under Sub-rule (1), may apply to the Court to be made a party to such suit.

4) No part of the claim in any such suit shall be abandoned under Sub- rule (1) and no such suit shall be withdrawn under Sub-rule (3) of Rule (1) of Order XXIII, Le. Order 23, Rule 1 (3), and no agreement, compromise or satisfaction shall be recorded in any such suit under Rule (3) of that Order, unless the Court has given, at the plaintiff's expense, notice to all persons so interested in the manner specified in sub-rule (2).

5) Where any person suing or defending in any suit does not proceed with due diligence in the suit or defence, the Court may substitute in his place any other person having the same interest in the suit.

6) A decree passed in a suit under this rule shall be binding on all persons on whose behalf, or for whose benefit, the suit is instituted, or defended, as the case may be.

Explanation: For the purpose of determining whether the persons who sue or are sued, or defend, have the same interest in one suit, it is not necessary to establish that such persons have the same cause of

action as the" persons on whose behalf, or for whose benefit, they sue or are sued or defend the suit, as the case may be.

Conditions to Apply Rule 8 : The Apex Court has decided in **T. N. Housing Board v. Ganapathy, AIR 1990 SC** that for the application of Rule 8 the following conditions must be fulfilled:-

- a. the parties must be numerous; Rule 8(1)
- b. they must have the same interest in the suit; Rule 8(1)
- c. the permission must have been granted [Rule 8(1) (a)] or direction must have been given by the Court [Rule 8(1) (b)]; and
- d. notice must have been issued to the parties whom it is proposed to represent in the suit. Rule 8(2)

1) Numerous persons: The word "numerous" means a group of persons. It is not necessary that the number of persons should be capable of being ascertained. But it is necessary that the body of persons represented by the plaintiffs or the defendants must be sufficiently definite so as to enable the Court to recognize as participants in the suit.

2) Same Interest: The persons on whose behalf the suit is instituted must have the same interest which is common to all of them or they must have a common grievance which they seek to get redressed. For the purpose of this condition the above explanation to Rule 1 is relevant.

3) Permission or direction by the Court [Rule 8 (1) (a) and Rule 8 (1) (b)]

4) Notice: [Rule 8 (2)] The fact about the representative nature of the suit must be stated in the body of the plaint as well as in the file of the suit. In a representative suit, even on the death of the person appointed to conduct such suit, such suit will not abate and other person or persons interested in the suits may proceed with the suit or may apply to be added as plaintiff.

Q. Explain the meaning, nature and object of res-judicata. What do you understand by constructive res-judicata? Does consent decree operate as res-judicata? What do you understand by the doctrine of "res-sub-judice"?

Under the Roman law, "*ex captio res judicata*" means "*one suit and one decision is enough for any single dispute*". The doctrine has been accepted in all civilized legal system. In India, it is governed under Section 11 of Civil Procedure Code, 1908 which provides that once a matter is finally decided by a competent court, no party can be permitted to reopen it in a subsequent litigation. In **Satyadhyan Ghosal v. Deorjin Debi, A.I.R. 1960 SC 941**, it was held that the principle of res judicata is based on the need of giving finality to judicial decision. Further, in the absence of such a rule, there will be no end to litigation and the parties would be put in constant trouble, harassment, and expenses.

Object

The doctrine is based on three maxims:-

- No man should be vexed twice for the same cause.
- It is in the interest of the state that there should be an end to litigation.

- A judicial decision must be accepted as correct.

Conditions for application of Res Judicata (Section 11 of CPC,1908)

- ***There must be two suits – One former & other subsequent:*** Former suit means previously decided suit. It doesn't matter when the suit was instituted. What it matters is when the decision came from the court. For example,

Suit Filled on	Suit Decided on	Former suit
1/10/2012	Still pending	No
1/01/2013	10/11/2017	Yes

- ***Matter directly and substantially in the subsequent suit:*** It means that matter must be directly related to the suit. It must not be collateral or incidental to the issue. For example, 'A' and her mother filed a suit against her father's brother for claiming a share in the property of her mother. The question of marriage expenses was not directly or substantially in issue. The claim of partition was dismissed by the court. However, the principle of res judicata doesn't bar 'A' to file a subsequent suit for her marriage expenses as the matter was not directly in issue in the former suit.
- ***There must be same parties:*** The parties to a suit are those whose name appears on the record of the suit at the time of the decision. A party who withdraws or whose name is struck off is not considered as a party. Further, a minor not represented by the guardian for the suit is not a party to the suit. Where any decision made by the court in favor of or against any party then it not only binds the party but also their successors too. For an instance, a suit filed by any person for recovery of possession and ownership title and the court decided in his favor, then his legal heirs also considered as the parties after his death and res judicata will apply.
- ***There must be the same title:*** 'Same title' means 'in same capacity'. It has been held in the number of cases that 'a verdict against a man suing in one capacity will not stop him when he sues in another capacity'. For example, 'A' file suit against 'B' as the owner of property and suit is dismissed by the court. Later on, he filed a suit to claim his right as mortgagee will not bar him to institute a subsequent case. So where the suit is filed in a different capacity then it is considered to be a valid suit and doesn't bar by this doctrine.
- ***The decision must be made by the competent court:*** The Former decision must be given by competent court having jurisdiction on the case. If the case is decided by the court has no jurisdiction over the subject matter then res judicata will not apply. For an instance, revenue courts exercising authority under the Act can be held to be a court of limited jurisdiction and decision by it within its competence will operate as res judicata.
- ***Heard and finally decided:*** The matter directly & substantially in issue in subsequent suit must have been heard and finally decided by the court in a former suit. "Heard and finally decided" means that the court has exercised its judicial mind & after argument and consideration came to decision on contested matter and decision is made on the merits of the case. In following cases the matter is deemed to be finally decided on merits even if the former suit is disposed of in the following manner:

1. By ex parte
2. By dismissal
3. By decree on an award
4. By oath tender under section 8 on Indian Oath Act, 1873
5. By dismissal owing to plaintiff failed to produce evidence at the hearing.

Does Res Judicata Apply To Writ Petition?

In ***Daryo Singh v. State of U.P.***, the petitioner has filed a writ petition in High Court of Allahabad under Article 226 and it was dismissed. He further filled writ petition in Supreme Court under Article 32 of the constitution for same relief and same ground. The Supreme Court dismissed the petition and upheld the contention of High Court. Hence the principle will also apply to writ petitions.

However, it may be noted that the doctrine of Res Judicata will **not apply** to a writ of “**Habeas Corpus**”.

Foreign Judgments

Section 13 provides that foreign judgments may operate as res judicata except in following six cases:-

- Where the decision is not given by the competent court.
- Where the decision has not been given on the merits of the case.
- Where the judgment is found to be incorrect with the view of international law.
- Where the judgment opposed to the doctrine of natural justice.
- Where the decision has been obtained by fraud
- Where the judgment found to be on breach of law enforced in India.

Constructive Res Judicata

In ***Forward Construction Co. & Ors. v. Prabhat Mandal, Andheri & Ors.***, AIR 1986 SC 391 the Supreme Court explained the scope of constructive res judicata as envisaged in Explanation IV to Section 11 of CPC and observed that the High Court was not right in holding that the earlier judgment would not operate as res judicata as one of the grounds taken in the present petition was conspicuous by its absence in the earlier petition.

The Court held that **Explanation IV to S.11**, CPC provides that any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit. An adjudication is conclusive and final not only as to the actual matter determined but as to every other matter which the parties might and ought to have litigated and have had it decided as incidental to or essentially connected with the subject matter of the litigation and every matter coming within the legitimate purview of the original action both in respect of the matters of claim or defence. The principle underlying Explanation IV is that where the parties have had an opportunity of controverting a matter that should be taken to be the same thing as if the matter had been actually controverted and decided. It is true that where a matter has been

constructively in issue it cannot be said to have been actually heard and decided. It could only be deemed to have been heard and decided. The first reason, therefore, has absolutely no force.

Dr. Subramanian Swamy v. State of Tamil Nadu & Ors. (2014) 1 SCALE 79). If the issue has been already decided on merit between the same parties in an earlier litigation, it cannot be decided again. Explanation (4) thereof, also provides or constructive res judicata which has to be read like the provisions of **Order II Rule 2**. It also applies to the proceedings in the Suit.

CONSENT DECREE AS RES-JUDUCATA

The Bombay High Court in **Chiranji Lal v Life Insurance Corpn of India AIR 1952 Bom 396** has, however, held that a consent decree made in a representative suit, whether under Order 1, Rule 8 or under section 92 of CPC, could be res dedicated on the ground of estoppel.

Law commission of India in its 144th report had recommended that the matter of consent decree is of relevance. It had been subjected to controversies that whether res judicata applies to consent decree and there are different views regarding it. Therefore the commission recommended to add explanation in this section with respect to it. The present status is that the section does not apply, to consent decrees for. It cannot be said in the case of such decrees that the matters in issue between the parties "have been heard and finally decided" 'within the meaning of the section. A compromise decree, if not vitiated by fraud, misrepresentation, misunderstanding or mistake is binding and operates as judicata as also estoppel between the parties.

Res-subjudice (Stay of Suit)

Section 10 of the CPC deals with the concept of 'res subjudice'. The Latin word 'Res' means 'thing' and 'sub judice' means 'under a judge' or 'under determination of a court.' Technically the term 'res sub judice' means stay of suit. In other words, a suit is to be stayed the subject matter of which is already a matter of issue in another suit. Section 10 specifies that no court shall proceed with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties and that the court in which the previous suit is pending is competent to grant the relief claimed.

Conditions of Res-subjudice: – For the application of section 10 following conditions have to be fulfilled

1. Two or more suits
2. All suites are pending
3. Same Parties
4. Same Subject-matters
5. Same Cause of Action
6. All suits are instituted in India.

Res Judicata v. Res Subjudice

1. Res-judicata prohibits second trial of the same dispute between same parties, while Res-subjudice prohibits proceedings of two parallel suits between same parties.

2. In case of Res-Subjudice, the matter in issue in both the suits must be substantially the same. On the other hand, in Res-Judicata the matter directly and substantially in issue in the subsequent suit must have been in the former suit either actually or constructively.

3. In case of Res-Subjudice, the previously instituted suit must be pending in the same court in which the subsequent suit was brought or in a different court having jurisdiction to grant the relief claimed. On the contrary, in Res-Judicata, the former suit must have been a suit between the same parties or between parties under whom they or any of them claim.

4. In case, of Res-Subjudice, such parties must be litigating in both the suits under the same title. In case of Res-Judicata, such parties must have been under the same title in the former suit.

5. In case of Res-Subjudice, it can be waived by parties to the suit with mutual consent. In case of Res-Judicata, it has universal and general application thus it cannot be waived with the consent of the parties to the suit.

6. Res-Subjudice, it applies to only suit including appeal. whereas Res-Judicata, applies to suit and applications.

8. In case, of Res-Subjudice, defence cannot be taken in written statement. In case of Res-Judicata, defence can be taken in written statement.

Res Judicata V. Estoppel

Resjudicata	Estoppel
1. The principle of resjudicata is a part of law of procedure and is founded on the ground of public policy that there should be an end to the litigation. It is contained in section 11 of CPC.	On the other hand, the principle of estoppel is a part of law of Evidence and founded on the principle of equity that one should not be permitted to say different things at different occasions .It is contained in section 115 of the Indian Evidence Act.
2. The Doctrine of res judicata is the result of a decision of a Court of law.	Whereas doctrine of estoppel is the result of the act of parties.
3. Res judicata ousts the jurisdiction of Court and prohibits the Court from trying any matter or issue already finally decided.	Whereas estoppel is only a rule of evidence and prohibits a party from proving a different fact, other than what he stated earlier, by adducing evidence .
4. The truth of the former decision is conclusively presupposed by the plea of res judicata.	The rule of estoppel prevents a person from denying what he once induced another to believe to be true and to act upon it.
5. Res judicata binds both the parties to a litigation .	Estoppel binds only that party who made the previous statement.
6. The doctrine of res judicata aims at bringing an end to the litigation.	The doctrine of estoppel aims at keeping a party at only one point what he stated to be true and induced another to act upon such belief.

7. Res judicata shuts the door of a person to open it for agitating the same cause in successive litigations .

On the other hand , estoppel shuts the mouth of a person to speak hot and cold at different occasions .

Q. Who can be appointed as a receiver? What are the powers and duties of a receiver?

The term receiver has not been defined in the Code of Civil Procedure 1908. Receiver is an important person appointed by Court to collect, receive pending the proceedings, the rents, issue and profit of land or personal estate, which it does not seem reasonable to the Court that either party should collect or receive, or for enabling the same to be disbursed among the person entitled.

In other words, the receiver is an indifferent person between the parties to a case, appointed by the Court to receive and preserve the property or fund in litigation pendent lite, when it does seem reasonable to the Court that either party should hold.

So, receiver is an officer of the Court to whom is given possession or custody and management of property. He has no power except those which has been conferred of him expressly or impliedly by the Court. The property does not vest in the receiver; the receiver is not the representative or agent of the parties. His holding of property is holding of the Court. He is also a public officer within the meaning of clause 17 of section 2 of the Code of Civil Procedure (C.P.C).

Appointment of Receiver

Relief by way of appointment of a receiver is discretionary with the Court. According to section 44 of the Specific Relief Act 1963, "The appointment of a receiver pending a suit is a matter resting in the discretion of the Court.

The mode and effect of his appointment, and his rights, powers, duties and liabilities are regulated by the Code of Civil Procedure."

In a suit for a declaration and permanent injunction, a civil court is competent to appoint a receiver. But this power should be used only in exception cases **[PLD 1957 Kar. 625, PLR 1957 (2) W.P. 1001]**. A receiver can be appointed of any movable or immovable [e.g., Share in companies, lands, stock in trade etc.].

The Court is competent to appoint a receiver for a disputed property only when the conditions laid down in Order XL Rule-1 of the Code is fulfilled. According to Order XL Rule-1 of the Code of Civil Procedure 1908, "Where it appears to the Court to be just and convenient, the Court may by Order-

- a) appointment a receiver of any property, whether before or after decree;
- b) remove any person from the possession or custody of the property;
- c) commit the same to the possession, custody or management of the receiver; and
- d) confer upon the receiver all such powers, as to bringing and defending suits and for the realization, management, protection, preservation and improvement of the property, the collection of the rents and profits thereof, the application and disposal of such rents and profits, and the execution of documents as the owner himself has, or such those powers as the Court thinks fit."

Remuneration

The Code of Civil Procedure Order XL Rule-2 deals with the Remuneration of a Receiver.

- Receiver remuneration is in the discretion of the Court .
- A party is not to get any remuneration.
- If a person appointed receiver accepts to keep account in a partnership without remuneration he does not thereby forego his right to remuneration for managing the business.
- Any agreement between the receiver and a party regarding in remuneration is a gross contempt and void.
- Remuneration is to be fixed having regard to the nature of the work and the responsibility to be shouldered by the receiver. It may be fixed a fixed sum or on the percentage basis.

Duties

The Code of Civil Procedure Order XL Rule-3 deals with the Duties of a Receiver. Receiver cannot delegate his duties.

- The Court has discretion to appoint receiver without securities, but it should be done in most exception cases.
- Where a receiver is appointed, the property does not vest in him free of the encumbrance to which it is already subject.
- Duty to receiver in regard to monies received.
- Receiver is not liable to account for any period other than for which he was appointed.
- A purchase of property by a receiver in an execution sale without the special leave of the Court is void.
- A receiver must furnish details of expenditure.
- Appeal: – See (rule 1) ante. An Order refusing to accept security offered by an interim receiver is not appealed.

Enforcement of receiver's duties

The Code of Civil Procedure Order XL Rule-4 deals with the Enforcement of receiver's duties.

- If the receiver is to be found guilty of gross negligence, it must be first shown by those who so allege that it would have been profitable to the estate if the debtor's property has been attached.
- Where a receiver is found guilty the only provision for taking action against him, apart from proceeding against the security, is that his property can be attached, and that is the only way of enforcement of the Order and arrest and imprisonment are not the methods.
- The Court can in the course of passing the accounts of the receiver, make an Order to make good the loss caused by the receiver through his willful negligence, no separate suit against him is necessary.
- Receiver may be removed for failure to submit accounts

- A receiver who has once been appointed should be discharged only on the ground of proven incapacity.
- A receiver appointed by consent of the decree-holder can be discharged only for malfeasance or for futility of the administration.
- Appeal: – Rule 4 is appeal able but Order making the receiver liable for a certain sum or to pay a certain amount into Court is not appeal able unless accompanied by an Order of attachment and sale which is the operative part of the rule.

When Collector may be appointed receiver

The Code of Civil Procedure Order XL Rule-5 deals with the scenario when Collector may be appointed receiver. Where the property is land paying revenue to the Government, or land of which the revenue has been assigned or redeemed, and the Court considers that the interests of those concerned will be promoted by the management of the Collector, the Court may, with the consent of the Collector appoint him to be receiver of such property.

Conclusion

Appointment of Receivers is the discretionary power of the Court. It must be made pending a suit and it is only by way of specific Relief. A receiver appointment by the High Court, who has under its Order taken possession of property, cannot be prosecuted for criminal branch of trust in respect thereof without first obtaining the leave of the Court.

Q. Write in brief about the law relating to suits by or against the Government. Can a suit be filled against a Government servant without serving notice as required under this code? If so, when? State with illustration about inter-pleader suit.

Suits by or Against the Government or the Public Officers in their Official Capacity (Section 79 to 82 and Order XXVII)

Title to Suit: The authority to be named as a plaintiff or defendant, in any suit by or against Government shall be. **(Section 79)**

1. the Union of India: Where the suit is by or against the Central Government, or

2. the State: Where the suit is by or against the State Government.

Requirement of Notice: No suit shall be instituted, except as provided in sub-section (2) of section 80 against the Government or against a public officer in respect of any act purporting to be done by such public officer in his official capacity unless a Notice in writing has been issued and until the expiration of two months next after notice. **[Section 80 (1)]**

Notice to whom:

a. Against Government: The Notice issued under section 80(1) shall be delivered to, or left at the office of –

1) In the case of a suit against Central Government -

- i) a Secretary to that Government [Section 80 (1) (a)] : when it does not relate to a railway, and
- ii) the General Manager of Railway [Section 80 (1) (b)]: when it relates to a railway.

2) In the case of a suit against the State Government of Jammu and Kashmir [Section 80 (1) (bb)] -

- i) a Chief Secretary to that Government; or
- ii) any other person authorized in this behalf by the State Government.

3) In the case of a suit against any other State Government [Section 80 (1) (c)] -

- i) a Secretary to that Government; or
- ii) the collector of the district.

b) **Against Public Officer [Section 80 (1)]:** In the case of a suit against Public Officer notice shall be delivered to him or left at his office.

Contents of Notice: The notice shall contain the following particulars -

- i) the name, description and place of residence of the plaintiff;
- ii) the cause of action; and
- iii) the relief, which the plaintiff claims.

Exemption from Notice [Section 80 (2)]: A suit may, with the leave of the Court, be instituted to obtain an urgent or immediate relief without serving any notice as required under section 80(1).

But, in such suit, the Court shall not grant any relief, whether interim or otherwise; except after giving to the Government or Public Officer, as the case may be, a reasonable opportunity of showing cause in respect of the relief prayed in the suit.

It is also provided that the Court shall return the plaint for presentation to it after complying with the requirements of section 80(1), if after hearing the parties, the Court is satisfied that no urgent or immediate relief need to be granted.

No Dismissal of suit: Any suit instituted against the Government or such public officer shall not be dismissed, by reason of any error or defect in the notice, if such notice contains-

- I. The name, description and residence of the plaintiff, so as to enable the Government or such public officer to identify the person serving the notice;
- II. Notice has been delivered or left at the offices of the appropriate authority specified U/s 80(1); and
- III. The cause of action and the relief claimed have been substantially indicated.

Procedure in Suit: Signature and Verification of Plaint Or Written Statement

Agent and Authorized Agent: The Court shall allow a reasonable time in fixing a day for the Government to answer the plaint, for the purpose of necessary communication with the Government through proper channel and for the issue of instructions to the Government pleader to appear and answer on behalf of

the Government. The time so allowed may, at the discretion of the Court, be extended but the time so extended shall not exceed two months in the aggregate. **Order XXVII Rule 5**

Where in any case the Government Pleader is not accompanied by any person on the part of the Government, who may be able to answer any material. questions relating to the suit, the Court may, direct the attendance of such a person. **Order XXVII Rule 6**

Duty of Court: It shall be the duty of the Court to make every endeavour, if possible to do so consistently with the nature and circumstances of the case, to assist the parties in arriving at a settlement in respect of the subject-matter of the suit (**Order XXVII Rule 5-B (1)**) and in every such suit or proceeding, at any stage, if it appears to the Court that there is a reasonable opportunity of settlement between the parties, the Court may adjourn the proceeding for such period, as it thinks fit, to enable attempts to be made to effect such a settlement (**Order XXVII Rule 5-B (2)**) The power to adjourn proceeding under sub-rule (2) shall be in addition to any other power of the Court to adjourn proceedings. (**Order XXVII Rule 5-B (3)**)

Procedure in Suit against Public Officer: The defendant (public officer) on receiving the summons may apply to the Court to grant the extension of time fixed in the summons, to enable to him to make reference to the Government, and to receive orders thereon through the proper channel [**Order XXVII Rule 7 (1)**] and the Court shall, on such application extend the time for so long as it appears to it to be necessary. [**Order XXVII Rule 7 (2)**]

The Government shall be joined as a party to the suit, where the suit is instituted against the public officer for damages or for any other relief in respect of any act alleged to have been done by him in his official capacity. (**Order XXVII Rule 5-A**)

Where the government undertakes the defence of a suit against a public officer, the government pleader, upon being furnished with authority to appear and answer the plaint, shall apply to the Court, and upon such application the Court shall cause a note of his authority to be entered in the register of civil suits. [**Order XXVII Rule 8 (1)**]

Where no application under sub-rule (1) is made by the government pleader on or before the day fixed in the notice for the defendant to appear and answer, the case shall proceed as in a suit between private parties. [**Order XXVII Rule 8 (2)**]

No need of security from government or a public officer in certain cases: No such security as is mentioned in rules 5 and 6 of order XLI shall be required from the government or, where the government has undertaken the defence of the suit, from any public officer sued in respect of an act alleged to be done by him in his official capacity.

Exemption from Arrest, Personal Appearance and Attachment of Property: According to section 81 of the Code, if the suit is against a public officer in respect of any act purporting to be done by him in his official capacity –

- a. the defendant shall not be liable to arrest nor his property to attachment otherwise than in execution of a decree, and
- b. where the court is satisfied that the defendant cannot absent himself from his duty without detriment to the public service, it shall exempt him from appearing in person.

Execution of decree (Section 82): Where, in a suit by or against the Government or by or against a public officer in respect of any act purporting to be done by him in his official capacity, any decree passed against the Union of India or a State or, as the case may be, the public officer, shall not be executed except in accordance with the provisions of sub-section (2) of Section 82. i.e. An execution shall not be issued on any such decree unless it remains unsatisfied for the period of three months computed from the date of such decree. **[Section 81 (2)]**

The provisions of sub-sections (1) and (2) shall apply in relation to an order or award as they apply in relation to a decree, if the order or award - **[Section 81 (3)]**

a. is passed or made against the Union of India or a State or a public officer in respect of any such act as aforesaid, whether by a Court or by any other authority; and

b. is capable of being executed under the provisions of this Code or of any other law for the time being in force as if it were a decree.

Definition of 'Government' and 'Government Pleader': Rule 8-B of Order XXVII provides that in Order XXVII 'Government' and 'Government Pleader' mean respectively"

i. in relation to any suit by or against the Central Government or against a public officer in the service of that Government- the Central Government and such pleader as that Government may appoint. **(Order XXVII Rule 8-B (a))**

ii. in relation to any suit by or against a State Government or against a public officer in the service of a State- the State Government and such Government pleader as defined in Section 2(7), or such other pleader as the State Government may ,appoint. **(Order XXVII Rule 8-B (c))**

Inter Pleader Suit (Section 88 and Order XXXV)

Meaning: An interpleader suit is a suit in which the real dispute is not between the plaintiff and the defendant but between the defendants only and the plaintiff is not really interested in the subject matter of the suit.

Object: The primary object of instituting an interpleader suit is to get claim of rival defendants adjudicated.

Principle: According to Section 88

"Where two or more persons claim adversely to one another the same debts, sum of money or other property, moveable or immoveable, from another person, who claims no interest therein other than for charges and costs and who is ready to pay or deliver it to the rightful claimant, such other person may institute a suit of interpleader against all the claimants for the purpose of obtaining a decision as to the person to whom the payment or delivery shall be made and of obtaining indemnity for himself:

Provided that where any suit is pending in which the rights of the parties can properly be decided, no such suit of interpleader shall be instituted.

Conditions for Application: Before the institution of an interpleader suit, the following conditions must be satisfied:

- a. Existence of some Debt, Money or Moveable or Immoveable Property: there must be some debt, sum of money or other moveable or immoveable property in dispute;
- b. Adverse Claim by two or more persons: two or more persons must be claiming the above debt, money or property, adversely to one another;
- c. The person from whom the debt, money or property is being claimed should not be interested in it: the person from whom such debt, money or property is claimed, must not be claiming any interest therein other than the charges and costs:
- d. The above person must be ready to deliver it: The above person must be ready to pay or deliver it to the rightful claimant; and
- e. No Pendency of Suit: there must be no suit pending in which the rights of the rival claimants can be properly decided.

Who may not institute an interpleader suit?

An Agent or Tenant: An agent cannot sue his principal or a tenant his landlord for the purpose of compelling them to interplead with persons claiming through such principals or landlords, because ordinarily, an agent cannot dispute the title of his principal and a tenant cannot dispute the title of his landlord during the subsistence of tenancy. **(Section 116 Indian Evidence Act)**

Illustrations: A deposited a box of jewels with B as his agent:

- a. C alleges that the jewels were wrongfully obtained from him by A, and claims them from B. B cannot institute an inter pleader suit against A and C. (C claims adversely to A, and therefore, no inter pleader suit can file.)
- b. He then writes to C for the purpose of making the jewels a security for a debt due from himself to C. A afterwards alleges that C's debt is satisfied, and C alleges the contrary. B claim the jewels from B. B may institute an interpleader suit against A and C. (C claims through A and , therefore, it can file.)

Procedure in Inter pleader Suit: Order XXXV provides the procedure for the institution of an interpleader suit.

Plaint in Interpleader Suit (Order XXX Rule 1): In every interpleader suit the plaintiff in addition to other statements necessary for plaint, state –

- a. that the plaintiff claims no interest in the subject matter in dispute other than the charges or costs;
- b. the claims made by the defendants severally; and
- c. there is no collusion between the plaintiff and any of the defendants.

Payment of thing claimed into Court: The Court may order the plaintiff to place the thing claimed in the custody of the Court when the thing is capable of being paid into Court or placed in the custody of Court **(Order XXX Rule 2)** and provide his costs by giving him a charge on the thing claimed. **(Order XXX Rule 6)**

Procedure where defendant is suing plaintiff (Stay of Proceedings): Where any of the defendants in an interpleader suit is actually suing the plaintiff in respect of the subject matter of such suit, the Court in which the suit against the plaintiff is pending shall, on being informed by the Court in which the

interpleader suit has been instituted, stay the proceeding as against him; and his cost in the suit so stayed may be provided for in such suit; but if, and in so far as, they are not provided for in that suit, they may be added to his costs incurred in the interpleader suit. **(Order XXX Rule 5)**

Procedure of First Hearing:

1. At the first hearing, the Court may
 - a. Declare that the plaintiff is discharged from all liabilities to the defendants in respect of the thing claimed, award him his costs and dismiss him from the suit; or
 - b. if it thinks that justice or convenience so require, retains all parties until the final disposal of the suit.
2. Where the Court finds that the admission of the parties or other evidence enable the Court to do so, it may adjudicate the title to the thing claimed.
3. Where the admissions of the parties do not enable the Court so to adjudicate the Court may direct -
 - a) that an issue or issues between the parties be framed and tried, and
 - b) that any claimant be made a plaintiff in lieu of or in addition to the original plaintiff, and shall proceed to try the suit in the ordinary manner.

Q. Appeal is a right created by statute- Discuss. What is the procedure prescribed by the code of Civil Procedure for filling an appeal? Discuss in detail the law relating to second appeal under the Code of Civil Procedure. Describe the forms and contents of an appeal.

Appeals (Section 96 to 112, Order 41-45)

Introduction: The provisions relating to appeals are contained in Sections 96 to 112 and Orders XLI to XLV of the Code of Civil Procedure and can be summarized as under:

- a. First Appeal, Sections 96 to 99-A, 107 and Order XLI
- b. Second Appeal, Sections 100 to 103, 108 and Order XLII
- c. Appeals from Orders Sections 104, 108 and Order XLIII
- d. Appeals by Indigent persons Order XLIV
- e. Appeals to Supreme Court Section 109 and Order XLV

Meaning: The appeal means "the Judicial examination of the decisions by a higher Court of the. decisions of an inferior Court"

Right To Appeal: A Statutory And Substantive Right

Right to appeal is statutory and substantive right. It is not merely appeal procedural right. Statutory right means must be conferred by statute unless it provides there won't be any right to appeal. While right to institute a suit is not conferred by law. The right is inherent. But right to appeal has to be conferred by appeal statute. Where statute provides for right to appeal, it may constitute appeal machinery where shall

the appeal lie. While the same isn't true for right to sue. A civil suit has to be filed subject to condition of jurisdiction. An appeal is appeal substantive right. Right to appeal can't be taken retrospectively because general rule of specific interpretation. Substantive law operates prospectively unless an express statute provides so.

When does right to appeal to appeal accrues to any person?

As soon as judgment is pronounced against party, right to appeal arises. Right to appeal doesn't arise when adverse decision is given, but on the day suit is instituted i.e. proceedings commenced, right to appeal get conferred. Thus, it can be said the Right to appeal is appeal substantive right vested in parties from the date suit instituted. The right to appeal can be waived by a party under a legal and valid agreement, and if a party has accepted the benefits under the decree, he is stopped from challenging its legality. The right to appeal also stands destroyed if the court to which appeal lies is abolished altogether without any forum being substituted in its place

The Court hearing the appeal, has the power to implead a person as respondent who has not been so impleaded where it appears to the court that he may be a person and interested in the result of the appeal

First Appeal : (Sections 96 – 99-A, 107 and Order XLI)

Appeal from Original Decree: S. 96 of the Code provides as:

1. Save where otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie from every decree passed by any Court exercising original jurisdiction to the Court authorized. to hear appeals from the decision of such Court.
2. An appeal may lie from an original decree passed ex parte.
3. No appeal shall lie from a decree passed by the Court with the consent of parties.
4. No appeal shall lie, except on a question of law, from a decree in any suit of the nature cognizable by Courts of small causes, when the amount or value of the subject-matter of the original suit does not exceed ten thousand rupees.

Who may Appeal: The following persons are entitled to prefer an appeal :

1. A party to the suit who is adversely affected by the decree {Section 96(1)}, or his legal representative. (Section 146)
2. A person claiming under a title party to the suit or a transferee of interests of such party, who, so far as interest is concerned, is bound by the decree, provided his name is entered on the record of the suit. (Section 146)
3. A guardian ad litem appointed by the Court in a suit by or against a minor. (Section 147, Order 32, Rule 5)
4. Any other person, with the leave of the Court, if he is adversely affected by the decree.

An appeal may lie against an ex-parte decree {S- 96(2)} and no appeal shall lie from a decree passed with consent of parties {S- 96(3)}. The provision of S-96(3) is based upon principle of Estoppels. Once the decree

is shown to have been passed with the consent of parties, Section 96(3) becomes operative and binds them. It creates and Estoppels between the parties as a judgment on consent.

There shall be no appeal in petty cases as provided in Section 96(4) and an appeal lies against preliminary decree as in the case of all decrees, unless a final decree has been passed before the date of filing an appeal, but there shall be no appeal against final decree when there was no appeal against preliminary decree. In fact, final decree owes its existence to the preliminary decree. **(Section 97)**

Conditions before filing an appeal: An appeal can be filed against every decree passed by any Court in exercise of original jurisdiction upon the satisfaction of the following two conditions:

- i) The subject matter of the appeal must be a "decree", and
- ii) The party appealing must. have been adversely affected by such determination.

Order XLI - Appeal from Original Decrees. Form of Appeal: Rule 1 to 4:

Memorandum of Appeal: Contains the grounds on which the judicial examination is invited. In order that an appeal may be validly presented, the following requirements must be compiled with:

- a. It must be in the form of memorandum setting forth the grounds of objections to the decree appealed from.
 - b. It must be signed by the appellant Court or his pleader.
 - c. It must be presented to the Court.
 - d. The memorandum must be accompanied by a certified copy of the decree.
 - e. The memorandum must be accompanied by a certified copy of the judgment unless the Court dispenses with it; and
 - f. Where the appeal is against a money decree, the appellant must deposit-the decretal amount or furnish the security in respect thereof as per the direction of the Court.
- As per Rule 2, the appellant shall not except with the leave of the court take any grounds of objection other than those mentioned in the memorandum. This is so that the opposite party is given notice of the objections raised.
 - However, the court may suo moto decide to take such objections as it deems fit even though they haven't been specified in the memorandum, provided the opposite party is given sufficient opportunity to contest such grounds.
 - As per Rule 3, where the memorandum is not in correct form, the court may even reject or amend the same. Where the memorandum is rejected, reasons shall be recorded by the court and where the memorandum is amended; the judge must initial or sign the same.
 - Rule 4 provides that where there are more than one plaintiffs/defendants, and the decree proceeds on grounds which are common to all, the court may reverse or vary such decree in favour of all such persons.

- This rule thus gives the court the full power to do justice to all parties even where only one of them files an appeal and not all of them are parties to such appeal.

Second Appeals-

- Sections 100 to 103, 107 and 108 and Order XLII deal with second appeals.
- A second appeal can be filed only in case of a decree.
- It may be filed only with the High Court against a decision in appeal of a court subordinate to the High Court.
- A decree passed ex parte in appeal may be appealed against as well.
- A second appeal shall be allowed only where the case involves a substantial question of law. The memorandum of appeal shall specifically mention such substantial question of law.
- A substantial question of law is one that directly and substantially affects the rights of parties. It is not a question of general importance but one rising between the two parties.
- Where the High Court is satisfied that there is a substantial question of law involved, it shall formulate such question and hear the appeal on such question.
- The respondent shall be allowed that argue that such a question is not a substantial question.
- However, even where a particular question has not been formulated by the court, the court may hear it for reasons to be recorded where it is of the opinion that such a question is a substantial question.
- The second appeal must be filed within 90 days from the date of the decree which is being appealed against.
- S.100-A provides an exception to the rule in S.100.
- It states that no second appeal shall lie from a decree passed in appeal by a single judge of a High Court. This shall be irrespective of the letters patent for any High Court.
- Another exception is that no second appeal shall lie in case of a decree where the subject matter of the original suit is for recovery of money less than Rs.25, 000.
 - Under S.103, where there is sufficient evidence on record, the High Court may determine an issue for the disposal of the appeal which has not been determined by any of the lower courts or which has been determined wrongly by such lower courts.
- Order 42 provides that the provisions relating to first appeals shall be applicable as far as possible to second appeals.
- Rule 2 provides that while making an order under Rule 11 of Order 41 (dismissal of an appeal summarily), the court shall formulate only the substantial question of law and the appellant shall not urge that any other question be decided except with the leave of the court.
- The difference between second appeal and revision may be seen as follows-

- (a) Second appeal involves a substantial question of law. Revision involves a jurisdictional error.
 - (b) A second appeal can be filed against a decree passed by an appellate court. Revision is allowed only when there is no appeal.
 - (c) In case of a second appeal, the High Court can correct a legal error of the lower court. In case of revision, the High Court cannot interfere with the decision of the lower court even when it is legally wrong.
 - (d) In case of second appeal, the High Court can decide an issue of fact. In case of revision, an issue of fact cannot be decided.
 - (e) In case of revision, the High Court may refuse to interfere if it is satisfied that substantial justice has been done. In case of second appeal, the High Court has no discretionary power and it cannot decline to grant relief on equitable grounds.
- S.108 provides that the powers of the appellate court under S.107 shall be applicable in case of second appeals and appeals from orders as well.

Appeals from orders-

- Sections 104 to 108 and Order XLIII deal with appealable orders.
- Appeals lie only from such orders as are mentioned under section 104 and Order XLIII.
- There shall be second appeal in case of an order.
- No appeal shall lie in case of any other order. However, where a decree is appealed from and any order is passed which has any irregularity, defect or error and the same is important for the decision of the case, it may be set out as an objection in the memorandum of appeal.
- Where a person does not appeal from an order of remand, he cannot appeal from the same afterwards.
- The appeal in such cases would lie to a court to which an appeal from a decree would lie.
- Where the order is passed in a court in exercise of its appellate jurisdiction and such court is not the High Court, an appeal shall lie to the High Court. (Refer to point 4)
- Where an order is made against a party, a judgment has been passed and a decree has been drawn up, in an appeal against the decree, the appellant may contend that the order was wrongly passed. (Rule 1-A of Order XLIII)
- Where a decree is passed against a party recording or refusing to record a compromise, the party may appeal against the same.

Procedure of Hearing an appeal-

- Where the appeal has not been dismissed summarily, a date for hearing the appellant shall be fixed. Where the Appellate court does not dismiss the appeal at once, it shall hear the respondent as well.

- Where the appellant fails to appear on the day fixed, the appeal shall be dismissed. Where the respondent does not appear, the Appellate court shall decide against him ex parte. (Rule 17)
- However, where an appeal has been dismissed under rules 11 or 17, the appellant may apply to the court to re-admit the appeal and where it is shown that there was sufficient cause for non-appearance, the court shall allow the appeal to be admitted again.
- Where the appeal has been decided ex parte, the respondent may apply to the court to re-hear the appeal and the court will allow the same where the respondent proves that the notice was not duly served on him or that he was prevented due to some other sufficient cause from appearing.
- Further, where the court is of the opinion that a party to the suit in the lower court, who is not a party to the appeal, is interested in the appeal, it shall adjourn the hearing and make such person a respondent in the appeal. (Rule 20)
- Rule 22 deals with cross objections.
- Where the suit is partly decided in favour of the appellant and partly in favour of the respondent, and where any of the parties files an appeal, the opposite party may take the following recourse-
 - (a) He may file a cross appeal against the part of the decision which is against him.
 - (b) He may file a cross objection against the part of the decision which is against him.
 - (c) He may support the decree on the grounds decided in his favour as well as those against him.
- The main difference between a cross appeal and a cross objection is that a cross appeal involves two distinct and independent proceedings while cross objections are taken in the same proceeding.
- Cross objections can be filed by a respondent where he could have appealed against any part of the decree or where he is aggrieved by a finding in the judgment even though the decree is in his favour due to some other finding.
- Cross objections are generally filed against an appellant. However, they may also be filed against co-respondents where the appeal cannot be proceeded with without deciding issues between respondents inter-se.
- However, there can be cross objections against a person who is not a party to the suit.
- The cross objections may be heard and decided on merits even where the appeal has been withdrawn or dismissed for default.
- However, they will not be heard where the appeal has become time barred or has abated or is not maintainable as they depend on the hearing of the appeal.
- Cross objections must be in the form of a memorandum of appeal and must be served on other party or his pleader.
- A respondent may file cross objections even as an indigent person.

- The appeal and the cross objections must be heard together as they are part of the same proceeding. Thereafter, the judgment shall be delivered on both the appeal and the cross objections.
- Where no cross appeal or cross objection is filed, the appellate court shall not disturb the decree of the lower court so far as it is in the favour of the appellant.
- Court fee is payable on the cross objection in the same manner as it is payable on the memorandum of appeal.
- Cross objections must be filed within one month from the date on which notice is served on the respondent as regards the date fixed for the hearing.

Appeals by indigent persons-

- This is dealt with by Order XLIV.
- Rule 1 provides that any person who cannot pay the sufficient fee to file the memorandum of appeal may appeal as an indigent person.
- An application to appeal as an indigent person must be accompanied by the memorandum of appeal.
- Rule 2 provides that where the application to appeal as an indigent person is rejected, the court shall require the applicant to pay the requisite court fee within such time as may be prescribed.
- In such case the memorandum of appeal shall have the same force as it would have had the fee would have been paid in the first instance.
- Rule 3 provides that where a person suing as an indigent person or appealing as an indigent person files an affidavit stating that he has continued to remain an indigent person even after passing of the decree which is appealed against (first appeal in case of a suit and second appeal in case of a first appeal), such affidavit shall be sufficient proof of his indigent status.
- However, where the affidavit is disputed by the government pleader or the respondent, the court shall enquire into the same.

Where the applicant becomes an indigent person after the date of the decree appealed against (first appeal in case of a suit and second appeal in case of a first appeal), the Appellate court or any officer of such court shall enquire into the matter if necessary.

Appeals to the Supreme Court-

- Such appeals have been dealt with under Sections 109 and 112 and Order XLV.
- An appeal shall lie from a judgment, decree or final order of the High Court to the Supreme Court where-
 - (a) Such a case involves a substantial question of law of general importance.
 - (b) In the opinion of the High Court, such question needs to be decided by the Supreme Court.

- This shall not affect the jurisdiction of the Supreme Court under Art.136 of the Constitution or any rules framed by the Supreme Court. (not important)
- Where any person wishes to appeal to the Supreme Court, he shall file a petition with the court whose decree has been complained against. (Rule 2 of Order XLV)
- Such petition shall be heard and disposed of within a period of 60 days.
- Under Rule 3, the petition shall state the grounds for appeal and pray for a certificate to be issued stating that the case involves a substantial question of law or is one that needs to be decided by the Supreme Court.
- When the petition is filed, the court whose decision is being appealed against shall notify the opposite party so that he may file his objections against the grant of the certificate.
- The petition shall be dismissed where the certificate is refused.
- Where the certificate is granted, the appellant shall deposit the required security and costs within the specified period of time. Further security may be asked to be deposited before transmission of records to the Supreme Court.
- Once such security and costs are paid, the court from whose decision an appeal is preferred shall declare the appeal as having been admitted, shall notify the respondent, shall transmit to the Supreme Court a correct copy of the record under seal and furnish copies of such papers in the suit as may be required by the parties on payment of a certain amount.
- No notice is required to be sent to the legal representatives of a deceased respondent or a deceased respondent where such respondent did not appear for any hearing as regards the decree in the court whose decree is being appealed against.
- Where the appellant fails to comply with an order requiring him to furnish security, the appeal shall not proceed to the Supreme Court.
- Rule 13 provides that even where a certificate for appeal to the Supreme Court has been granted, the decree appealed from shall be executed unconditionally.
- The court where it deems fit on cause shown by any of the parties may impound any immovable property in dispute, may stay the execution of the decree taking security from the appellant for due performance of the decree or may execute the decree taking security from the respondent for due performance of the decree.
- Where an appeal is heard by the Supreme Court and any decree or order is made, any party who wishes to execute the order may apply to the court which originally passed the decision appealed from with a petition accompanied by the decree or order of the Supreme Court.
- Such court shall transmit the record of the Supreme Court as the Supreme Court may decide for execution.
- The orders relating to such execution shall be appealable in the same manner as the orders relating to execution of a decree.

Q. Discuss the Powers and duties of an Appellate Court.

Powers of an Appellate Court –

- **To determine a case finally-** This is provided under Section 107 and Rule XXIV.
 1. The appellate court may determine the case finally where the evidence on record is sufficient to enable it to do so.
 2. It may or may not resettle issues in such case.
 3. It is immaterial that the lower court has proceeded on an entirely different ground.

To remand a case- This has been dealt with under Section 107 and Rules 23 and 23-A.

1. Remand means to send back.
 2. It is where the trial court has disposed the suit on a preliminary point without recording any findings and the decree has been reversed in appeal.
 3. In such cases, the appellate court shall send back or remand the case to the trial court to decide other issues and determine the suit.
 4. A preliminary point is one on which a decision may be given to dispose of the entire suit without looking into any other issue.
 5. The appellate court may even direct the trial court to admit the suit in its original number in the register of civil suits.
 6. The evidence if any was recorded the original suit shall be used as evidence where the case is remanded to the trial court.
 7. Further, under Rule 23-A, the appellate court may remand a case to the trial court where it feels retrial is necessary even where the trial court has not disposed the suit on a preliminary point. This suit must have been reversed on appeal.
 8. Thus, reversal is an important factor. An appellate court cannot remand a case where the judgment of the court is not satisfactory or where the lower court has misconceived the evidence or that the conclusion has been reached by the lower court on insufficient material.
 9. An order of remand nullifies the decision of the lower court.
 10. However, where a appellate court remands a case to the lower court by setting aside only certain findings, the other findings of the lower court shall not be set aside.
 11. The appellate court shall fix a date for appearance of the parties before the lower court.
 12. An order of remand is appealable.
- **Framing issues and referring them for trial-** This has been dealt with under S.107 and Rules XXV and XXVI.

1. Where the appellate court is of the opinion that the lower court has omitted to frame or try any issue or to determine any question of fact as it deems important for giving the right decision, it may frame such issues and send the case back to the lower court to try such issues.
2. It may even direct the lower court to take the additional evidence which is required.
3. Thereafter, the lower court shall try the issues and return the evidence to the appellate court with its findings within such time as may be prescribed by the appellate court.
4. The evidence and findings of the lower court shall form part of the record of the case.
5. Any party may file objections against such findings within the stipulated time period.
6. Where objections are not filed, the appellate court shall proceed to determine the appeal.
7. An order under Rule 25 is different from a remand because in case of a remand, the entire case goes back to the lower court for a decision. However, in case of an order under Rule 25, the case is retained in the file of the appellate court. Only the issues are sent back to the lower court for trial and findings.
8. An order for remand is a final order and the appellate court cannot reconsider it except on review. However, an order under Rule 25 is an interlocutory order which may be reconsidered by the appellate court which passed it.
9. An order for remand is appealable while an order under Rule 25 is not appealable.

Taking of additional evidence- This has been dealt with under S.107 and Rules 27 to 29.

- Additional evidence, oral or documentary may be taken by the appellate court only in the following circumstances-
- (a) Where the lower court has refused to admit necessary evidence
 - (b) Where the party adducing the evidence establishes that such evidence was not within his knowledge even after exercising due diligence at an earlier point of time
 - (c) Where such party establishes that even after exercising due diligence he could not produce such evidence when the original decree was passed
 - (d) Where the appellate court requires any document or witness to be examined in order to pass a judgment
- The appellate court will have to record reasons for the admission.
 - Additional evidence may be taken either by the appellate court or it may direct the lower court which had passed the decree or any other subordinate court to take such evidence and send it to the appellate court.
 - The appellate court shall specify the points to which the evidence is restricted and have the same recorded.

Duties of the Appellate Court-

- To decide the appeal finally
- Not to interfere with the decree for technical errors (S.99) As per S.99-A, an order passed by a court executing a decree should not be varied or reversed on account of any error, defect or irregularity unless the same has prejudicially affected the decision in the case.
- Appreciation of evidence
- Recording of reasons

Judgment and Decree in Appeal- Section 98 and Rules 30 to 34 deal with judgment in appeal.

- S.98 provides that where an appeal is heard by a bench of more than one judge, the appeal shall be decided in accordance with the opinion of the majority of the judges.
- Where there is no majority concurring with the varying or reversing the decree, the original decree shall be confirmed.
- There may be a situation where the appeal is being decided by a bench comprising an even number of judges (say 2 or 4 or 6) and there are more judges in the entire court than on the bench.
- In such a case where the bench differs on a point of law, such point of law may be decided by any number of the remaining judges of the court and the decision shall be taken by a majority of the judges who have heard the appeal, including the judges who heard it originally.
- This shall not affect the letters patent of any High Court.
- Rule 30 provides that the appellate court shall pronounce its judgment either at once or on later date notice of which has been given to the parties.
- The judgment shall be pronounced after hearing both parties and their pleaders and making reference to any proceedings of the appellate court as well as the lower court.
- The judgment shall be read out in open court.
- Where it is a written judgment, it is sufficient that only the points of determination, the decision on such points and the final order are read out.
- Rule 31 provides that apart from the particulars mentioned above (point 10), the judgment must also state the relief granted to the appellant where the decree is varied or reversed.
- The judgment shall be signed by the judge(s).
- As per Rule 32, the judgment may confirm, vary or reverse the original decree.
- It may even be in such form as may have been required by the parties.
- The court of appeal also has the power to make or pass any other order as is necessary even where only a part of the decree is appealed.
- Such order may be exercised against all or any of the parties even where they had not filed an appeal or cross objection.

- Where there are decrees in cross suits or more than one decree passed in a suit, such power shall be exercised as regards all such decrees.
- Rule 34 states that where a judge dissents from the decision given, he shall record the order or decision which must have been passed in his opinion and he shall also record reasons for the same.
- The decree of the appellate court shall contain the following particulars-
 - (a) The date of the judgment
 - (b) The number of the appeal
 - (c) The names and description of the parties
 - (d) The relief granted and any other adjudication made
 - (e) The amount of costs incurred
 - (f) From what property has such costs incurred
 - (g) From what property and in what proportions will the costs be payable
 - (h) Should be signed and dated by the judges
 - It shall not be necessary for the dissenting judge to sign the decree.
 - A certified copy of the judgment and decree shall be furnished to the parties on payment of the requisite amount.
 - A certified copy of the judgment and decree shall also be sent to the lower court. This shall form part of the original proceedings and shall be entered into the register of civil suits.

Q. When can court issue commission? State the different persons who may be examined on commission issued by the court?

The concept of 'Commission' is an important subject matter in the branch of CPC. Commission is an impartial person who is appointed by the Court and act as an agent of the Judge. The power of the Court to issued Commission by the Court for doing full and complete Justice between the parties.

When Commission is appointed: It is the discretionary power of the Court to appoint a Commission and a court may appoint a Commission either or an application by a party to the suit or its own motion.

How Commission is issued: Section 75 of the CPC enacts that the Court may issue a Commission for any of the following purposes:

- to examine any Person
- to make a local investigation
- to examine or adjust accounts

to make a partition

At present, The Court may issue a Commission for any of the following purposes

- 1) to examine any Person
- 2) to make a local investigation
- 3) to examine or adjust accounts
- 4) to make a partition
- 5) to make a scientific investigation
- 6) to conduct for sale , And
- 7) to perform a ministerial act.

There are shortly discussed about the above grounds, which are given below.

To examine any Person: Section (76 – 78), order (XXVI) 26, Rules (1 – 8) of the Code of Civil Procedure deals with the Commission to examine of witness. The court may issue a commission for the examination on interrogatories or otherwise of any person in the following circumstances: –

- 1) If the person to be examined as a witness reside within the local limits of the court's Jurisdiction ;
- 2) If he resides beyond the local limits of the Jurisdiction of the court, or
- 3) If he is about to leave the Jurisdiction of the court.

To make a local investigation(Order XXVI, Rule 9 to 10): The court may, in any suit, issue a commission to such person as it thinks fit directing him to make local investigation.

To examine or adjust accounts(Order XXVI, Rule 11 to 12): In any suit in which an examination or adjustment of accounts is necessary, the court may issue a commission to such person as it thinks fit directing him to make such examination or adjustment.

To make a Partition(Order XXVI, Rule 13 to 14): Where a preliminary decree for partition of immoveable property has been passed, the court may issue a commission to such person as it thinks fit to make a partition or separation according to the rights as declared in such decree.

To make a scientific investigation(order XXVI, Rule 10-A): Where any question arising in a suit involves any scientific investigation the court may issue a Commission to such person as it thinks fit, directing him to enquire into such question and report thereon to the court.

To conduct for sale(order XXVI, Rule 10-C): Where, in any suit, it becomes necessary to sell any moveable property which is in the custody of the Court, pending the determination of the suit and which cannot be conveniently preserved, the court may, issue a commission to such person as it thinks fit, directing him to conduct such sale and resort thereon to the court.

To perform a ministerial act (order XXVI, Rule 10-B): Where any question arising in a suit involves the performance of any ministerial act which cannot, in the opinion of the Court, be conveniently performed

before the court, the court may issue a commission to such person as it thinks fit, directing him to perform that ministerial act and report thereon to the court.

Commission to another Court (Section 76)

(1) A commission for the examination of any person may be issued to any court (not being a High Court) situate in a State other than the State in which the court of issue is situate and having jurisdiction in the place in which the person to be examined resides.

(2) Every court receiving a commission for the examination of any person under sub-section (1) shall examine him or cause him to be examined pursuant thereto, and the commission, when it has been duly executed, shall be returned together with the evidence taken under it to the court from which it was issued, unless the order for issuing the commission has otherwise directed, in which case the commission shall be returned in terms of such order.

Every court receiving a commission for the examination of any person shall examine him or cause him to be examined pursuant thereto and return the commission together with the evidence which shall, subject to the provisions of Rule 8, form part of the record of the suit. (Order XXVI, Rule 7).

Letter of Request (Section 77) and Commission of Foreign Court (Section 78)

Where evidence of a person residing outside India is necessary, the court may issue either a commission or a letter of request.

Letter of Request - In lieu of issuing a commission the Court may issue a letter to examine a witness residing at any place not within India.

Letters of Request / Rogatory is a formal communication in writing sent by the Court in which action is pending to a foreign court or Judge requesting the testimony of a witness residing within the jurisdiction of that foreign court may be formally taken thereon under its direction and transmitted to the issuing court making such request for use in a pending legal contest or action. This request entirely depends upon the comity of courts towards each other and usages of the court of another nation.

Commission issued by Foreign Courts - Subject to such conditions and limitations as may be prescribed the provisions as to the execution and return of commissions for the examination of witnesses shall apply to commissions issue by or as the instance of-

- a. Courts situate in any part of India to which the provisions of this Code do not extend; or
- b. Courts established or continued by the authority of the Central Government outside India, or
- c. Courts of any State or country outside India.

Persons for whose examinations commission may be issued: Rule 4(1): Any Court may in any suit issue a commission for the examination on interrogatories or otherwise of any person,

- a. If he resides beyond the local limits of the jurisdiction of the court or [(Order XXVI, Rule4(1)(a)]
- b. if he is about to leave the jurisdiction of the Court, or [(Order XXVI, Rule4(1)(b)]
- c. if he is a Govt. servant and cannot, in the opinion of the court, attend without detriment to the public service, or [(Order XXVI, Rule4(1)(c)]

d. if he is residing out of India and the Court is satisfied that his evidence is necessary. Rule 5

To whom Commission may be issued: [Rule 4 (2) and (3)]

Rule 4(2): Such commission may be issued to any Court, not being a high Court, within the local limits of whose jurisdiction such person resides; or to any pleaded or other person whom the Court issuing the commission may appoint.

Rule 4(3): The Court on issuing any commission under this rule shall direct whether the commission shall be returned to itself or to any subordinate Court.

Order for Issue of Commission: (Rule-2)

The Court may issue such a commission –

- a. either sue motu (of its own motion) or
- b. on the application of any party to the suit, or
- c. "ii) of the witness to be examined.

Evidence to be a part of Record: (Rule-7): The evidence taken on commission shall, subject to the provisions of rule 8, form part of the record.

When deposition may be read in evidence: (Rule-8) : Evidence taken under a commission shall not read as evidence in the suit without the consent of the party against whom the same is offered, unless.

- a. The person, who gave the evidence, is beyond the jurisdiction of the Court or dead or unable for sickness or infirmity to attend to be personally examined, or exempted from personal appearance in Court, or is a person in the Service of the Government who cannot, in the opinion of the Court, attend without detriment to the public service; or
- b. The Court in his discretion dispenses with the proof of any of the circumstances mentioned in clause (a), and authorizes the evidence of any person being read as evidence in the suit, notwithstanding proof that the cause for taking such evidence by commission has ceased at the time of reading the same.

Q. Discuss with suitable examples the concept “substantial question of law”.

The test to determine whether a question is a substantial question of law or not was laid down by a Constitution Bench of the Supreme Court in **Chunilal V. Mehta and Sons Ltd. v. Century Spg. and Mfg. Co. Ltd.** while determining the said expression occurring in Article 133(1) of the Constitution of India. The Supreme Court laid down the test as follows:

"The proper test for determining whether a question of law raised in the case is substantial would, in our opinion, be whether it is of general public importance or whether it directly and substantially affects the rights of the parties and if so whether it is either an open question in the sense that it is not finally settled by this Court or by the Privy Council or by the Federal Court or is not free from difficulty or calls for discussion of alternative views. If the question is settled by the highest court or the general principles to be applied in determining the question are well settled and there is a mere question of applying those

principles or that the plea raised is palpably absurd the question would not be a substantial question of law."

The above test laid down by the Supreme Court is to be applied by the High Courts to acquire jurisdiction under Section 100 CPC.

Keeping in view the amendment made in 1976, a High Court can exercise its jurisdiction under Section 100 CPC only on the basis of substantial questions of law which are to be framed at the time of the second appeal and the second appeal has to be heard and decided only on the basis of such duly framed substantial questions of law. A judgment rendered by the High Court under Section 100 CPC without following the aforesaid procedure cannot be sustained.

In **M.S.V. Raja v. Seení Thevar** it was held by the Supreme Court that the formulation of a substantial question of law may be inferred from the kind of questions actually considered and decided by the High Court in second appeal, even though the substantial questions of law were not specifically and separately formulated. The observations made by the Court in this regard are as follows:

"We are unable to accept the argument of the learned Senior Counsel for the appellants that the impugned judgment cannot be sustained as no substantial question of law was formulated as required under Section 100 CPC. In para 22 of the judgment the High Court has dealt with substantial questions of law. Whether a finding recorded by both the courts below with no evidence to support it was itself considered as a substantial question of law by the High Court. It is further stated that the other questions considered and dealt with by the learned Judge were also substantial questions of law. Having regard to the questions that were considered and decided by the High Court, it cannot be said that substantial questions of law did not arise for consideration and they were not formulated. Maybe, substantial questions of law were not specifically and separately formulated. In this view, we do not find any merit in the argument of the learned counsel in this regard."

To determine the ratio of this case qua Section 100 CPC, the original proposition may be stated as follows: *"The judgments of High Courts in second appeals can be sustained if the judgments consider and decide substantial questions of law without formulating them specifically and separately."*

Now if Prof. Wambaugh's reversal test to determine ratio decidendi is applied, the original proposition may be reversed as follows: *"The judgments of High Courts in second appeals cannot be sustained if the judgments consider and decide substantial questions of law without formulating them specifically and separately."*

It can be seen that the result of the decision will not be the same after the reversal of the original proposition. If the reversed proposition is applied, the appeal will be allowed. Therefore, the original proposition is the ratio of the case. It is submitted with respect that the ratio of this case is inconsistent with sub-sections (3), (4) and (5) of Section 100 CPC. This decision has the effect of diluting the provisions of Section 100 CPC.

Sub-section (3) of Section 100 imposes a statutory obligation on the appellant in a second appeal to formulate the substantial question of law in the memorandum of grounds of appeal. The proviso to sub-section (5) read with subsection (4) makes it clear that formulation of substantial question of law is mandatory and if any other substantial question of law arises, the same can be decided without formulating it/them. The proviso to sub-section (5) clearly negates the view taken in M.S.V. Raja case. It is respectfully submitted that the holding of the Court that "whether a finding recorded by both the courts below with no evidence to support it was itself considered as a substantial question of law by the High

Court" does not pass the test laid down by the Constitution Bench of the Supreme Court in *Chunilal Mehta* case. It is submitted with respect that the ratio regarding Section 100 CPC in *M.S.V. Raja v. Seenil Thevar* needs reconsideration.

Q. In which cases Reference, Review and Revision are maintainable? Explain with suitable Judicial decisions. State the differences between review and revision. Point out the difference between Reference and Review

REFERENCE (Section - 113 and Order XIII)

Section 113 provides provisions relating to reference and empowers any Court (subordinate Court) to state a case and refer the same for the opinion of the High Court. Such an opinion can be sought when the Court itself feels some doubt about a question of law. The provisions are subject to such conditions and limitations as may be prescribed.

Object: The object for reference is to enable the subordinate Courts to obtain in non-appealable cases the opinion of the High Court, on a question of law and thereby avoid the commission of an error which could not be remedied later on. (*Chhotubhai v. Bai kansi AIR 1941 Bombay 3.1. Proviso to Section 113*)

Conditions for Applications: (Order XLVI Rule 1) The following conditions must be fulfilled, before High Court entertains a reference from a sub-ordinate Court, i.e.

- 1. Pendency:** There must be pendency of a suit or appeal in which the decree is not the subject to appeal or a pending proceeding in execution of such decree.
- 2. Question of law:** A question of law or usage having the force of law must arise in the course of such suit, appeal or proceeding ; and
- 3. Doubt in mind of Court:** The Court trying the suit, appeal or executing the decree must entertain a reasonable doubt on such question.

Questions of law: The subordinate Court may be in doubt relating to the questions of law, which may be-

1. Those which relate to the validity of any Act, Ordinance or Regulation and the reference upon such questions of law are obligatory upon the fulfillment of the following conditions: (**Order XLVI**)
2. The Sub- ordinate Court is of the view that the impugned Act, Ordinance or Regulation is ultra vires; and
3. That there is no determination by the Supreme Court or by the High Court, to which such Court is Subordinate that such Act, Ordinance or Regulation is ultra vires.

2. Other Questions: In this case the reference is optional.

Procedure (Order XLVI Rule 3): Who can make Reference: A reference can be made by the Court suo-moto or on application of any party.

Rule 1: The Referring Court must formulate the question of law and give its opinion thereon.

Rule 2: The Court may either stay the proceeding or may pass a decree or order, which cannot be executed until receipt of judgment of High court on reference.

Rule 3: The High Court after hearing the parties, if it so desires, shall decide the point of reference and the Subordinate Court shall dispose of the case in accordance with the said decision.

Provision as in Section 113: The provisions relating to reference, as has been specified in s. 113 of the Code are as under-

Section 113: Reference to High Court: Subject to such conditions and limitations as may be prescribed, any court may state a case and refer the same for the opinion of the High Court, and the High Court may make such order thereon as it thinks fit:

PROVIDED that where the court is satisfied that a case pending before it involves a question as to the validity of any Act, Ordinance or Regulation or of any provision contained in an Act, Ordinance or Regulation, the determination of which is necessary for the disposal of the case, and is of opinion that such Act, Ordinance, Regulation or provision is invalid or inoperative, but has not been so declared by the High Court to which that Court is subordinate or by the Supreme Court, the Court shall state a case setting out its opinion and the reasons therefore, and refer the same for the opinion of, the High Court.

Explanation: In this section, "Regulation" means any Regulation of the Bengal, Bombay or Madras Code of Regulation as defined in the General Clauses Act, 1897 (10 of 1897), or in "the General Clauses Act of a State.

Powers and Duty of Referencing Court: A reference can be made on a question of law arisen between the parties litigating, in a suit, appeal or execution proceeding, during the pendency of such suit, appeal or proceeding and the Court is in doubt on such question of law.

Powers and Duty of High Court: The High Court entertains the consulting jurisdiction in cases of reference and can neither make any order on merits nor can it make suggestions. In case of reference the High Court may answer the question referred to it and send back the case to the referring Court for disposal in accordance with law. **(Order XLVI Rule 5)** Where a case is referred to the High Court under Rule 1 of Order XLVI or under the proviso to section 113, the High Court may return the case for amendment, and may alter, cancel or set aside any decree or order which the Court making reference has passed or made in the case out of which the reference arose, and make such order as it thinks fit. **[Order XLVI Rule 5 (1)]**

Review (Section 114 and Order XLVII)

Meaning: Review means re-examination or reconsideration of the case by the same judge. It is a judicial re-examination of the case by the same Court and by the same Judge. In it, a Judge, who has disposed of the matter, reviews his earlier order in certain circumstances.

Section 114 and Order XLVII: The provisions relating to review are provided in S. 114 (substantive right) and Order XLVII (procedure). The general rule is that once the judgment is signed and pronounced or an order is made by the Court, it has no jurisdiction to alter it. Review is an exception to this general rule.

Section 114: Review: Subject as aforesaid, any person considering himself aggrieved

a. by a decree or order from which an appeal is allowed by this Code, but from which no appeal has been preferred;

b. by a decree or order from which no appeal is allowed by this Code, or

c. by a decision on a reference from a Court of Small Causes, may apply for a review of judgment to the Court which passed the decree or made the order and the Court may make such order thereon as it thinks fit.

Who may apply to Review: Any person aggrieved by a decree or order may apply for a review of Judgment where no appeal is allowed or where an appeal is allowed but no appeal has been filed against such decree or order or by a decision on a reference from a small cause. **(Sidebotham, exparte (1880) 14 Ch. D.)**

An 'aggrieved person'. means a person who has suffered a legal grievance or against whom a decision has been pronounced which has wrongfully deprived him of something or wrongfully refused in something or wrongfully affected his title to something. **(Order XLVII Rule 1(2))**

A person who is not a party to the decree or order cannot apply for review since on general principle of B.W, such decree or order is not binding on him and therefore he cannot be said to be an aggrieved person within the meaning of section 114 and order 47 Rule (1).

A party who has a right to appeal but does not file an appeal, may apply for a review of judgment, even if notwithstanding the pendency of an appeal by some other party except:

- i. Where the ground of such appeal is common to the applicant and the appellant, or
- ii. When, being respondent, he can present to the Appellate Court the case on which he applies for the review.

Grounds of Review: Order XLVII, Rule (1) provides the following grounds:

- i. Discovery of new and important matter or evidence, which after the exercise of due diligence, was not within his (aggrieved person's) knowledge or could not be produced by him (aggrieved person) at the time when the decree was passed or order made; or
- ii. on account of some mistake or error appear on the face of the record; or
- iii. for any other sufficient reason.

Explanation to section 114 specifically provides that "the fact that the decision on a question of law or which the judgment of the Court is based has been reserved or modified by the subsequent decision or a superior court in any other case, shall not be a ground for review of such judgment".

Procedure: Where the Court is of the opinion that there is not sufficient ground for a review, it shall reject the application **[Order XLVII, Rule 4(2)]** otherwise it shall grant the same (Proviso to Rule 4) but no such application shall be granted without previous notice to the opposite party; to enable him to appear and be heard in support of the decree or order, a review of which is applied for. **[Order XLVII, Rule 6 (1)]** Where more than one Judge hears a review application and the Court is equally divided the application shall be rejected. **[Order XLVII, Rule 7 (1)]**

Appeal Against Order on application U/s 114: An order of the Court rejecting the application shall not be appealable, but an order granting the application may be objected to at once by an appeal from the order granting the application or in an appeal from the decree or order finally passed or made in the suit.

Bar of Certain Application: No application to review an order made on an application for a review or ' decree or order passed or made on a review shall be entertained. **(Order XLVII, Rule 9)**

REVISION (SECTION 115)

Meaning: 'Revision' means "the action of revising, especially critical or careful examination or perusal with a view to correcting or improving". (**Pandurang v. Maruti AIR 1966. SC by Gajendragadkar J**) Revision is "the act of examining action in order to remove an defect or grant relief against the irregular or improper exercise or non- exercise of jurisdiction by a lower Court".

Object: The object of Section 115 is to prevent the subordinate Courts from acting arbitrarily, capricious and illegally or irregularly in the exercise of their jurisdiction. It enables the Court to correct, when necessary, errors of jurisdiction 'committed by the subordinate Courts and provides the means to aggrieved party to obtain rectification of a non-appealable order. The powers U/s 115 are intended to meet the ends of justice and where substantial justice has been rendered by the order of the lower Court the High Court will not interfere.

Provision U/s 115:

1. The High Court may call for the record of any case which has been decided by any Court subordinate to such High Court and in which no appeal lies thereto, and if such subordinate court appraisal to have exercised a jurisdiction not vested in it by law, or
 - b. to have failed to exercise a jurisdiction so vested, or
 - c. to have acted in the exercise of its jurisdiction illegally or with material irregularity, The High Court may make such order in the case as it thinks fit:

PROVIDED that the High Court shall not, under this section, vary or reverse any order made, or any order deciding an issue, in the course of a suit or other proceeding, except where the order, if it had been made in favour of the party applying for revision, would have finally disposed of the suit or other proceedings.

2. The High Court shall not, under this section vary or reverse any decree or order against Which an appeal lies either to the High Court or to any court subordinate thereto.
3. A revision shall not operate as a stay of suit or other proceeding before the court except where such suit or other proceeding is stayed by the High Court.

Explanation: In this section, the expression "any case which has been decided" includes any order made, or any order deciding an issue, in the course of a suit or other proceeding.

Conditions: The following conditions must be satisfied before the revisional power can be exercised:

- a. a case must have been decided;
- b. the Court deciding the case must be one which is a Court sub-ordinate to the High Court or the Session Courts, as the case may be;
- c. the order should be one in which no appeal lies; and
- d. the sub-ordinate Court must have
 - i. exercised jurisdiction not vested in it by law; or
 - ii. failed to exercise jurisdiction vested in it; or

iii. acted in the exercise of its jurisdiction illegally or with material irregularity.

It was decided by the Supreme Court in re **Smt. Vidyavati Vs Shri Devidas AIR 1977 S. C. 397**, that a revision against order on review application by sub-judge to High Court directly without going into appeal to District Court, is maintainable.

Meaning of Expression "case Decided": Apex Court in **Baldevdas v. Filmistan Distributors AIR 1970 SC**, held that a case may be said to have been decided if the Court adjudicates for the purpose of the suit some right or obligation of the parties in controversy. Every order in the suit cannot be regarded as a case decided within the meaning of S. 115.

Explanation to S.115, which was added by the Amendment Act of 1976, makes it clear that the expression "case decided" includes any order made, or any order deciding an issue, in the course of a suit or proceeding. The expression 'any case which has been decided', now, after the Amendment Act means "each decision which terminates a part of the controversy involving the question of jurisdiction. **Major Khanna v. Brigadier Dillon AIR 1964 SC**

Interlocutory Orders: Section 115 applies even to interlocutory orders. Interlocutory Orders which are not appealable are subject to revision U/s 115 of the Code, if the conditions laid down in the section are fulfilled.

Limitation for Revision: The period of limitation for revision application is 90 days

Abatement: The provisions of Order XXII do not apply to revision application and such application does of abate on the death of the applicant or on account of failure to bring legal heirs of deceased applicant record.

No letters patent appeal lies from an order made in the exercise of revisional jurisdiction and no revision lies against an order passed by a single judge of a High Court.

Differences between "Review" and "Revision"

1. Section 114 Order 47 deals with Review. Section 115 deals with the Revision.
2. Any court, which passed the decree or made order, can review the case. The High Court can only do revision of any case which has been decided by any court subordinate to it.
3. The review can be made only on an application by an aggrieved party. Revisional powers can be exercised by the High Court on an application or even suo motu (of its own motion).
4. The order granting the review is appealable. An order passed in the exercise of revisional jurisdiction is not appealable.
5. Review can be made even when an appeal lies to the High Court. Revisional power can be exercised by the High Court only in a case where no appeal lies to the High Court.
6. The grounds for review are: (a) discovery of new and important matter or evidence; (b) mistake or error apparent on the face of the record; (c) any other sufficient reason.

The Conditions for revision are: (a) A case must have been decided; (b) the Court which has decided the case must be a Court subordinate to the High Court; (c) The order should not be an appealable one; (d)

The subordinate court must have – (i) exercised jurisdiction not vested in it by law; or (ii) failed to exercise jurisdiction vested in it, or (iii) acted in the exercise of its jurisdiction illegally or with material irregularity

Reference and Revision:

1. In reference the case is referred to the High Court by a court subordinate to it. On the other hand, the party aggrieved moves the High Court in revision for the exercise of its revisional jurisdiction, or the High Court may sua moto send for the case and examine the record.

2. The ground for reference is the entertainment of some reasonable doubt by the Court trying the suit, appeal or executing the decree with regard to a question of law or usage having the force of law. The ground for revision, on the other hand, relates to jurisdiction, viz., want of jurisdiction, failure to exercise a jurisdiction or illegal or irregular exercise of jurisdiction.

Reference and Review:

1. In reference the subordinate court refers the case to the High Court while in review an application is made by the aggrieved party.

2. The High Court alone can decide matters on reference while an application for review is made to the court which passed the decree or made the order.

3. Reference is made during the pendency of the suit, appeal or execution proceedings, while application for review is made to the court after it has passed the decree or made the order.

4. The grounds of reference and review are different. Reference is made by the court trying the suit, appeal or executing the decree when it entertains reasonable doubt with regard to any question of law or usage having the force of law. The grounds of review may be the discovery of new and important matter or evidence, some apparent mistake or error on the face of the record or any other sufficient reason.

Review and Appeal:

1. An application for review lies to the same court while an appeal lies to a higher court.

2. The main object of granting a review of judgment is reconsideration of the same matter by the same Judge, while an appeal is heard by another Judge.

3. The grounds of review are narrower than the grounds of appeal.

4. There is no second review, but there is second appeal on a substantial question of law.

Appeal and Revision:

1. An appeal lies to a superior court, which may not necessarily be a High Court; but an application for revision lies only the High Court.

2. An appeal lies only from appealable orders and decree, but an application for revision can be made only when the relief by way of appeal to the High Court is not available.

3. A right of appeal is a substantive right given by statute. There is no right of revision. It is only a privilege. A party may move the High Court to invoke its revisional jurisdiction or the High Court may of its own motion exercise revisional jurisdiction, but the power is discretionary.

4. An appeal abates if the legal representatives of a deceased party are not brought on the record within the time allowed by law. A revision does not abate in case of the death of a party even if the legal representatives are not brought on the record. The High Court has a right to bring the proper parties before the Court at any time.

5. The grounds of appeal and revision are different. An application in revision can lie only on the ground of jurisdiction, and the High Court in exercise of its revisional jurisdiction is not a court of appeal on a question of law or fact. In an appeal the court has the power to decide both questions of fact and law.

6. Section 115 does not require that there should be an application in revision. The High Court can move of its own accord in exercising revisional jurisdiction. In case of appeal there must be a memorandum of appeal filed before the same can be considered by the appellate court.

7. An essential distinction between an appeal and a revision is based on differences implicit in the said two expressions. An appeal is continuation of the proceedings. In effect, the entire proceedings are before the appellate authority and it has power to review the evidence subject to the statutory limitations prescribed. But in the case of a revision, whatever powers the revisional authority may or may not have; it has not the power to review the evidence unless the statute expressly confers on it that power. (**State of Kerala v. K.M. Charia Abdidla & Co., A.I.R. 1965 S.C. 1585**).

Q. Discuss the basic principles that govern the grant of an injunction. In which cases temporary injunction may be granted? Against whom injunction may be issued? What are consequences of disobedience or breach of injunction?

An injunction is a prohibitive writ issued by a court of equity, at the suit of a party complainant, directed to a party defendant in the action, or to a party made a defendant for that purpose, forbidding the latter to do some act, or to permit his servants or agents to do some act, which he is threatening or attempting to commit, or restraining him in the continuance thereof, such act being unjust and inequitable, injurious to the plaintiff, and not such as can be adequately redressed by an action fit law.

For example, if it so happens that a person is demolishing a building you have possible claims on, you may ask the competent court to order such person to not demolish the building until the trial for the claim of the building is complete and judgement goes in his favour.

The law of injunction has been provided for by the Specific Relief Act, 1963 (hereinafter, the Act), and is also regulated by the Code of Civil Procedure, 1908 in India.

Types of Injunctions in the Indian Law

Generally speaking, there are two types of injunctions under the act, as mentioned below:

1. **Temporary Injunction**
2. **Perpetual/Permanent Injunction**

Temporary Injunction

Temporary injunctions, as the name suggests, are the injunctions that are given for a specific period of time or until the court gives further order regarding the matter in concern. They can be obtained during any stage of the trial and are regulated by the Code of Civil Procedure (CPC), 1908:

- **Section 94:** The section provides for supplemental proceedings, to enable the court to prevent the ends of justice from being defeated. Section 94(c) states that a court may grant temporary injunction and in case of disobedience commit the person guilty thereof to the civil prison and order that his property be attached and sold. Section 94(e) of the Code enables the court to make interlocutory orders as may appear to it to be just and convenient.
- **Section 95:** If it is found by the court that there were no sufficient grounds to grant the injunction, or the plaintiff is defeated in the suit, the court may award reasonable compensation to the defendant on his application claiming such compensation.
- **Order XXXIX:**
 - **Rule 1:** It enlists the situations when a court may grant temporary injunction. These are:
 1. Any property in dispute in a suit is in danger of being wasted, damaged or alienated by any party to the suit, or wrongfully sold in execution of a decree, or
 2. the defendant threatens, or intends, to remove or dispose of his property with a view to defrauding his creditors,
 3. the defendant threatens to dispossess the plaintiff or otherwise cause injury to the plaintiff in relation to any property in dispute in the suit.
 - **Rule 2:** It provides that an interim injunction may be granted for restraining the defendant from committing a breach of contract or other injury of any kind to the plaintiff.
 - **Rule 3:** It states that a court shall direct a notice of application to the opposite party, before granting the injunction to the plaintiff. However, if it seems to the court that the purpose of the injunction would be defeated by the delay, it may not provide the notice.
 - **Rule 4:** It provides for vacation of already granted temporary injunction.
 - **Rule 5:** It states that an injunction directed to a corporation is binding not only on the corporation itself, but also on all members and officers of the corporation whose personal action the injunction seeks to restrain.

To grant the order of temporary injunction is purely a discretionary power of the court. This discretion is to be exercised according to the established judicial principles and judicially. The following principles were laid down in **Nawab Mir Barkat Ali vs. Nawab Zulfikar (AIR 1982 A.P. 384)** for consideration by the court while granting temporary injunction-

1. The court must be satisfied that the applicant has made out a prima facie case to go to the trial.
2. The court must be satisfied that there is a bonafide contention between the parties and on which side, in the event of success, will lie the balance of convenience, if the injunction is not granted.

3. The court must be satisfied that the plaintiff may suffer from irreparable loss or injury which cannot be adequately compensated by damages if the injunction is not granted.
4. where a permanent injunction cannot be given the temporary injunction is not allowed.

Further, the first condition being “sine qua non”, the plaintiff must prove one of the remaining two conditions for grant of temporary injunction.

Consequence of disobedience of injunction order Order XXXIX Rule 2A

In case of disobedience of an injunction order, the court may order the property of a person guilty of such disobedience to be attached for a period of one year. If at the end of one year the disobedience or the breach of order continues then the property attached may be sold by the court. The court may award compensation as it deems fit to the injured party from the profits accrued out of sale of such property and pay the balance amount if any to the party at default.

In addition to this Rule 2A of Order XXXIX also provides for detention of the defaulter of the court's order, in civil prison for a term not exceeding three months, unless in the meantime the court directs his release.

The primary object of the said provision is not to punish a person, who has disobeyed the order of injunction, but to enforce the order.

The Himachal Pradesh High Court in ***Kaushalya Devi V. Kaushalya Devi & Ors.*** has observed that willful disobedience, no doubt, invites wrath of penal action as envisaged in the said provision, hence, where any action is done in violation of a order or stay or injunction, it is the duty of the Court, as a policy, to set the wrong right and not to allow perpetuation of the wrong doing. These provisions are intended to maintain majesty of judicial order, to preserve rule of law and to ensure faith of litigants in the administration of justice. It is a curative provision and its purpose is to ensure that the direction of the Court is implemented, disobedience of order is remedied and status quo ante is restored.”

The court said that “It is not only the power but the duty of the Court to uphold and maintain the dignity of courts and majesty of law even though the same may call for extreme step.”

Q. Discuss the law relating to execution under the Code Of Civil Procedure. Discuss the various provisions of law under the Code of Civil Procedure relating to attachment.

Execution is the last stage of any civil litigation. There are three stages in litigation:

1. Institution of litigation.
2. Adjudication of litigation.
3. Implementation of litigation.

Implementation of litigation is also known as execution. A decree will come into existence where the civil litigation has been instituted with the presentment of plaint. Decree means operation or conclusiveness of judgement. Implementation of a decree will be done only when parties has filed application in that regard. A decree or order will be executed by court as facilitative and not as obligation. If a party is not approaching court, then the court has no obligation to implement it *suo moto*. A decree will be executed

by the court which has passed the judgement. In exceptional circumstances, the judgement will be implemented by other court which is having competency in that regard.

Execution is the medium by which a decree-holder compels the judgement-debtor to carry out the mandate of the decree or order as the case may be. It enables the decree-holder to recover the fruits of the judgement. The execution is complete when the judgement-creditor or decree-holder gets money or other thing awarded to him by judgement, decree or order.

MEANING: The term “execution” has not been defined in the code. The expression “execution” means enforcement or implementation or giving an effect to the order or judgement passed by the court of justice. Simply “execution” means the process for enforcing or giving effect to the judgement of the court. **(Overseas Aviation Engineering, In re, (1962) 3 All ER 12)** Execution is the enforcement of decrees and orders by the process of court, so as to enable the decree-holder to realise the fruits of the decree. The execution is complete when the judgement-creditor or decree-holder gets money or other thing awarded to him by the judgement, decree or order.

Illustration: A files a suit against B for Rs 10,000 and obtains a decree against him. Here A is the decree-holder. B is the judgement-debtor, and the amount of Rs 10,000 is the judgement-debt or the decretal amount. Since the decree is passed against B, he is bound to pay Rs 10,000 to A. Suppose in spite of the decree, B refuses to pay the decretal amount to A, and A can recover the said amount from B by executing the decree through judicial process. The principle governing execution of decree and orders are dealt with in Sections 36 to 74 (substantive law) and order XXI of the code (procedural law).

Supreme Court in **Ghanshyam Das v. Anant Kumar Sinha, (1991) 4 SCC 379** dealing with provision of the code relating to execution of decree and orders, stated, “so far as the question of executability of a decree is concerned, the Civil Procedure Code contains elaborate and exhaustive provisions for dealing with it in all aspects. The numerous rules of Order 21 of the code take care of different situations providing effective remedies not only to judgement-debtors and decree-holders but also to claimant objectors, as the case may be. In an exceptional case, where provisions are rendered incapable of giving relief to an aggrieved party in adequate measures and appropriate time, the answer is a regular suit in the civil court.

PRINCIPLES WITH REGARD TO EXECUTION OF DECREE AND ORDER

- Provision of CPC relating to execution of decree and order shall be made applicable to both Appeal and Sue.
- A decree may be executed by the court which passed the judgement and decree or by some other court which is having competency to implement the judgement passed by such other court.
- The court which passed the decree may send it for execution to other court either on application of the applicant (decree-holder) or by the court itself.
- A court may order for execution of decree on the application of decree on the application of decree holder (a) by delivery of any property which was in possession of judgement-debtor and decree has been specifically passed concerning such property (b) by attachment and sell of the property of the judgement-debtor (c) by arrest and detention (civil imprisonment) (d) by appointing a receiver (e) in such other manner which depends upon nature of relief granted by the court.

- Upon the application of decree-holder, the court may issue “percept” to any other court which is competent in that regard.
- All questions arising between the parties to the suit in the decree shall be determined by the court while executing the decree and not by separate suit.
- Where a decree is passed against a party as the “legal representative” of a deceased person and decree is for payment of money out of the property of deceased person, it may be executed by attachment and sell of any such property.
- A judgement-debtor may be arrested at any time and on any date shall required to be brought before the court which has passed the decree and his detention may be in civil prison of the district where decree shall have to be executed.
- Where immovable property has been sold by the court in execution of a decree such sell shall be absolute. The property shall be deemed to be invested in the favour of purchaser, and the purchaser shall be deemed as a party to litigation.
- The court to which decree is sent for execution shall require certifying to the court which has passed decree stating the manner in which decree has been implementing concerning the fact of such execution.

PROCEDURE IN EXECUTION: Section 51 to 54 talks about procedure in execution or mode for execution.

Section 51: this section gives the power to court to enforce the decree in general. This section defines the jurisdiction and power of the court to enforce execution. Application for execution of decree under this section may be either oral (order 21 rule 10) or written (order 21, rule 11). Party has to choose the mode of implementation of decree. Court may execute decree as per the choice prayed by the decree-holder or as court may thinks fit.

Mode of executing decree under section 51:

- (a) By delivery of any property specifically decreed. Property may be movable or immovable
- (b) By attachment and sale of the property or by sale without attachment of the property. Under clause (B) of section 51 it is within the power of court to attach the property if it is situated within its jurisdiction.
- (c) Court can execute decree by mode of arrest and detention. no execution of decree by arrest or detention of judgement-debtor unless reasonable opportunity is given in the form of show cause notice as why he should not be imprisoned.
- (d) It can be executed by appointing a receiver. Within the purview of this section it is permissible to appoint decree-holder himself as the receiver of the judgement-debtors land.
- (e) Clause (e) is the residuary clause and comes into play only when the decree cannot be executed in any of the modes prescribed under clause (a) to (d).

Section 52: Enforcement of decree against Legal representative: Section 52 deals with a case where the decree is passed against the legal representative of the judgement-debtor.

Section 52 (1) empowers a creditor to execute his decree against the property of deceased in the hands of legal representative so long as it remains in his hand. For application of this clause the decree should have passed against the party as the legal representative of the deceased person, and it should be for the payment of money out of the property of the deceased.

Section 52 (2) empowers a creditor to execute his decree against the legal representative personally if he fails to accounts for the properties received by him from deceased person.

Exception to section 52: 1. Court can implement the decree against the personal property of the legal representative provided if he is avoiding, neglecting or evading to make the payment from the property of deceased.

1. Where he has misutilized the property of deceased and where the legal representative has alienated the property of the deceased person.

Section 53: Liability of ancestral property: No legal representative should be held personally accountable where the suit has been filed against a joint Hindu family unless he has received some property of joint Hindu family.

Under pious obligation if has received the property of joint Hindu family then will be held liable. Where the decree has been passed against Karta, no execution be made against the son under pious obligation if the decree is passed after partition. Event after partition a son can be held liable if suit was pending before partition.

The son will be held accountable if after the death of Karta the decree has been executed and son has distributed the property of Karta among themselves. The member of joint Hindu family will be held liable if Karta has taken debt for moral purpose or family purpose.

The nature of suits determines how decree should be implemented.

Illustration: a promissory note has been executed by the father for the purpose of borrowing money. After the death of father the creditor instituted proceeding against son.

Where suit is filed basing on promissory note first it will be seen that whether suit is maintainable or not- if it is filed within three year then the suit will be maintainable. General rule is that son will be held liable if they have received ancestral property.

Where the son is not having knowledge about execution of promissory note, in such case will not be held liable even though has received the ancestral property.

Section 54: Partition of estate or separation of share.: Section 54 comes into play when a decree has been passed for partition, or for the separate possession of a share of an undivided state paying revenue to the government, that is the partition of the state or share will be made by the collector. However if the collector refuses to make the partition of the revenue paying property, the civil court can do so. ***Sewakram v. chunnilal*, AIR 1951 Nag 359.** To attract the provision of this section it is not necessary that the plaintiff should ask for the division of government revenue.

Section 54 deals with a case where though the civil court has the power to pass a decree yet it is not competent to execute the same. Under this section the execution of decree shall be made by collector.

PROCESS FOR EXECUTION OF DECREE

Order 21 rule 24 and 25 talks about process for execution.

Rule 24: process for execution

The court has inherent power to defer issue of process as envisaged under rule 24 and can give time to judgement-debtor in appropriate cases.

Rule 24 prescribes the procedure in case of execution of decree. In these matters the **AIR 1962 Manipur 24** court exercises judicial discretion, which cannot be interfered with by the district judge by issuing administrative order.

According to 24(3) execution must be completed by the date specified on the process for the purpose- Warrants for delivery of possession, therefore, ceased to be executable after expiry of the date appearing on the warrant.

After the process of execution is issued, rule 17 of order 21 cannot be invoked for amendment of execution application. If the amendment seeks to change the nature of execution, the power under section 151 and 153, also cannot be invoked.

Execution proceeding on the death of the decree-holder:-

Possession certificate under Section 214 of Indian Succession Act 1925, will not be necessary for continuation of proceeding by his legal Heirs, even if legal Heirs are not brought on record, the execution proceeding will not abate.

Delivery of possession to the decree-holder without notice to Judgement-debtor is not proper:

Application by judgement-debtor for re-delivery of the possession on the ground that he had no notice of the execution proceedings, dismissed by the trial court, however allowed by the High Court in revision, held, re-delivery of possession to the judgement-debtor was not proper, however, compensation of Rs, 2,000 was awarded to the judgement-debtor.

Notice under Order 21 Rule 21 is necessary only when the decree holder files an execution of decree for the first time against the legal representative of the deceased.

RULE 25: Endorsement on process : The officer who entrusted with the execution of the process, shall endorse upon the same date and the manner in which it was executed and also endorsed upon in the reason of delay and in case the process was not executed, will also state reasons thereof. However a person cannot be re- arrested on the ground of absence of endorsement.

MODE OF EXECUTION OF DECREE

The code lays down various mode of execution. After the decree-holder files an application for execution of decree, the executing court can enforce execution.

A decree may be enforced by delivery of any property specified in the decree, by attachment and sale or by sale without attachment of the property, or by arrest and detention, or by appointing a receiver, or by effecting partition, or any such manner which the nature of relief requires.

ARREST AND DETENTION: One of the modes of executing a decree is arrest and detention of the judgement-debtor in civil imprisonment.

Where the decree is for payment of money, it can be executed by arrest and detention of the judgement-debtor.

A judgement-debtor may be arrested at any time on any day in execution of a decree. After this arrest, he must be brought before the court as soon as practicable. For the purpose of making arrest, no dwelling house may be entered after sunset or before sunrise. Further, no outer door of a dwelling house may be broken open unless such dwelling house is in the occupancy of the judgement-debtor and he refuses or prevent access thereto.

No order of detention of the judgement-debtor shall be made where the decretal amount does not exceed Rs. 2000.

Where the judgement-debtor pays the decretal amount and costs of arrest to the officer, he should be released once.

A woman, judicial officers, the parties, their pleaders, member of legislative bodies, a judgement-debtor where the decretal amount does not exceed Rs 2,000, these person cannot be arrested and detained in civil imprisonment.

A decree for money cannot be executed by arrest and detention where the judgement-debtor is a woman, or a minor, or a legal representative of a deceased judgement-debtor.

ATTACHEMENT OF PROPERTY: A decree may also be executed on the application of the decree-holder by attachment and sale only sale without attachment of property. The code recognizes the right of the decree-holder to attach the property of the judgement debtor in execution proceeding and lays down the procedure to effect attachment. Sections 60 to 64 and rules 41 to 57 of Order 21 deals with the subject of attachment of property. The code enumerates properties which are liable to be attached and sold in execution of a decree. It also specifies properties which are not liable to be attached or sold. It also prescribes the procedure where the same property is attached in execution of decrees by more than one court. The code also declares that a private alienation of property after attachment is void.

Section 60(1) declares what properties are liable to attachment and sale in execution of a decree, and what properties are exempt therefrom. All saleable property(movable or immovable) belonging to the judgement-debtor or over which or the portion of which he has a disposing power which he may exercise for his own benefit may be attached and sold in execution of a decree against him.

Section 61 deals where the judgement-debtor is agriculturalist. It state that judgement-debtor is agriculturalist. Any agriculturalist produce is subject matter of agriculturalist. The quantum of attachment of agricultural product depends upon the quantum of decretal amount.

Section 63 where two different courts have attached the same property through different decree, then it will be looked, that which court is superior. The value of the property will determine whether further attachment can be done or not.

PERCEPT Section 46- “precept” means a command, an order, a writ or a warrant. A percept is an order or direction given by court which passed the decree to a court which would be competent to execute the decree to attach any property belonging to the judgement-debtor.

Section 46 provides that court which passed a decree may, upon an application by the decree-holder, issue a percept to that court within whose jurisdiction the property of the judgement-debtor is lying to attach any property specified in the percept.

A percept seeks to prevent alienation of property of the judgement-debtor not located within the jurisdiction of the court which passed the decree so that interest of the decree-holder is safeguarded and protected.

It is interim attachment of the property which lies outside the jurisdiction of court which has passed the order. To protect the interest of the decree holder on his application will issue percept to the court in whose jurisdiction property is situated to attach the property of the judgement-debtor. The interim order for attachment is valid for the period of only 2 months.

GARNISHEE ORDER: It is the proceeding by which the decree-holder seeks to reach money or property of the judgement-debtor in the hands of a third party (debtor of judgement-debtor).

Suppose A owes Rs 1000 to B and B owes Rs 1000 to C. By a garnishee order, the court may require A not to pay money owed by him to B, but instead to pay C, since B owes the said amount to C, who has obtained the order.

“Garnishee order” is an order passed by a court ordering a garnishee not to pay money to the judgement-debtor because the latter is indebted to the garnisher.

SALE OF THE PROPERTY: A decree may be executed by attachment and sale or sale without attachment of any property. Section 65 to 73 and rules 64 to 94 of Order 21 deals with the subject relating to sale of movable and immovable property.

- Power of court: Rule 64-65

Rule 64: a court may sell the property, which he has taken into custody under an attachment under order 60.

Rule 65: appointment of officer by the court who will be charged to sell the property. Officer will be the representative of the court and will sell the property for execution of decree.

- Proclamation of sale: Rule 66-67

It is a kind of order or declaration. It operates as a public notice regarding the sale. It's says that people can participate in auction and sale. Proclamation can be in writing or by customary mode.

Contents of proclamation:-

1. Time and place of sale
2. Property to be sold
3. Revenue, if any, assessed upon the property;
4. Encumbrance, if any, to which property is liable;
5. Amount to be recovered;

6. Details relating to property, such as title deed, length etc.

- Time of sale: Rule 68

No sale without the consent in writing of the judgement-debtor can take place before fifteen days in case of immovable property and before 7 days in case of movable property from the date of proclamation in the courthouse. A sell can be conducted immediately if the property is of perishable nature.

- Adjournment of sale: rule 69

If the judgement-debtor after the issue of proclamation and before sell has paid the amount, or has partly promised to pay on the given date before completion of public order, if there is any justified reason, in those circumstances, court has discretionary power to postponed the sell. If it has been postponed for period of 30 days, fresh proclamation has to be issued and again the process of rule 67, 68 and 69 will follow.

Sell cannot be postponed where judgement-debtor dies before the date of sell or after the issue of proclamation, or on the date of auction.

- Restriction to bid: Rule 72-73

A decree-holder cannot, without the express permission of the court, purchase the property sold in execution of his own decree.

A mortgagee of immovable property cannot, without the leave of the court, purchase the property sold in execution of decree on the mortgage.

Any officer or other person having any duty to perform in connection with the execution sale cannot either directly or indirectly, acquire or any attempt to acquire any interest in the property sold in execution.

Rule 74-78 talks about sale of movable property. Rules 74 and 75 relates to the sale of agricultural produce and growing crops. Rule 76 covers negotiable instruments and shares. Sale of movable property should be held by public auction. A sale of movable property will not be said aside on the ground of irregularity in publishing or conducting the sale (rule 78).

Rule 82-94 talks about sale of immovable property. Rule 83 enables the executing court to postpone sale to enable the judgement-debtor to raise decretal dues by private alienation.

Rule 84-85 provide for payment of purchase money by auction-purchaser. Rule 86 talks about cases of default by auction-purchaser in making requisite payment and resale of property. Rule 89-91 and 93 deals with setting aside sale and effect thereof. Rules 92-94 provide confirmation of sale and issuance of sale-certificate. Section 65 declares the effect of sale.

LIMITATION ACT, 1963

Q. "Law of Limitation bars remedy but does not extinguish right" – Discuss. What is the object of Limitation Act 1963?

Law of Limitations: The Law of Limitations limits or prescribes a time after the lapse of which suit or other proceedings cannot be maintained in a Court of law or the persons liable to sue shall become exempt

from answering therein. It does not postpone or suspend the right of claimants, it merely prescribes a period for the institution of suit and forbids them from being brought after periods, each of which starts from some definite event. It only restrains the holder of a right from enforcing his right by recourse to law after prescribed period of limitation.

Nature of Act: "The rule of limitation is a rule of procedure, a branch of adjective law. The intention of the law of limitation is not to create a right where there is none, nor to extinguish a right where there is one, but to interpose a bar after a certain period to enforce an existing right."¹ The plea of limitation can be raised only as against the plaintiff and not against the defendant.

Law is "lex feri": It means whether an obligation is to be enforced or not depends exclusively upon the law of limitations of the country in which the suit is brought (lex feri) Act is a Complete Code: The Limitation Act is an exhaustive code governing law of limitation in India in respect of all matters specifically dealt with by it and the Indian Courts are not permitted to travel beyond its provisions to add or to supplement them.

"Limitation bars the remedy but does not destroy the right"

Section 3 of Indian Limitation lays down the general rule of Limitation Act and reads as under:

"Subject to the provisions contained in Sections 4 to 24 (inclusive), every suit instituted, appeal preferred, and application made after the prescribed period shall be dismissed; although limitation has not been set up as a defence"

The Limitation Act thus prescribes period within which various suits, appeals or applications for respective claims can be instituted in courts of law. If a party or claimant fails to do so, it cannot claim any further remedy at law.

The rule of limitation is a rule of procedure. It does not either create or extinguish a right. In the words of **Sir Richard Couch in Harrynath v. Mather, 20 LA. 188:** "The intention of the law of limitation is not to give right where there is none nor to extinguish a right where there is one but to interpose a bar after a certain period to a suit to enforce an existing right."

Limitation thus simply bars the judicial remedy, without extinguishing the right. For example, where the recovery of a debt has become time barred by the lapse of prescribed time, the right to the debt is not extinguished and the same applies to the debtor without being aware of the money due to him on the ground that his claim for recovery of the debt had become time barred.

In **Punjab National Bank and others v. Surendera Prasad Sinha, AIR 1992 SC 1815** it was held that Section 3 of Limitation Act bars the remedy but does not destroy the right to which the remedy relates. Right to debt continues to exist notwithstanding remedy is barred. Right can be exercise in any other manner than by means of suit. It is settled law that the creditor would be entitled to adjust, from payment of sum by debtor towards time barred debt. It is also equally settled law that creditor when he is in possession of adequate security debt due could be adjusted from security in his possession.

Law of Limitation is an absolute law and the parties cannot evade it by way of private agreement. Thus under Section 28 of the Contract Act, an agreement which limits the time within which any party thereto may enforce his rights by the usual legal proceedings in ordinary tribunals is void. Similarly, an agreement between the parties that defendant will not plead the law of limitation in a suit brought against him by the other is void.

Exception: However, there is one exception to rule that law of limitation bars the remedy but not the right. This has been incorporated in Section 27 of the Act. The Section provides:

"At the determination of the period hereby limited to any person for instituting a suit for possession of any property his right to such property shall be extinguished. "

In **First National Bank Ltd. v. Seth Santlal, AIR 1954 Punjab 328** it was observed: "Section 27 of the Limitation Act is, however, an exception to the general rule that in personal actions, the Limitation Act bars only the remedy and does not extinguish the right. In a suit for possession of any property on the determination of the period of limitation not only the remedy but the right also, is extinguished under Section 27. But a debt does not cease to be due, because it cannot be recovered after the expiration of the period of limitation provided for instituting a suit for its recovery. After a debt becomes barred a person is still deemed to owe."

Q. Discuss the provisions of law relating to Computation of period of limitation under the Limitation Act, 1963.

COMPUTATION OF PERIOD OF LIMITATION AND EXCLUSION OF TIME IN ROCEEDING

Section 3 of Indian Limitation Act gives the general rule of limitation by providing "Subject to the provisions contained in Sections 4 to 24, every suit instituted, appeal preferred, and application made after the prescribed period shall be dismissed although limitation has not been set up as a defence."

So the rule that suit, appeal or application filed after the period of limitation, shall be dismissed is subject of provisions contained in Sections 4 to 24 of the Act. Sections 12 to 15 of Limitation Act provide for it, excluding certain periods while computing the period of limitation prescribed.

Section 12 of Act says that in computing the period of limitation of any suit, appeal or application

- a. the day from which period is to be reckoned.
- b. the day on which judgment complained of was pronounced.
- c. time requisite for obtaining a copy of decree, sentence or order appealed from or sought to be revised or reviewed.
- d. time requisite for obtaining the copy of judgment on which decree or order is founded.
- e. time requisite for obtaining a copy of award shall be excluded.

In **Parthasarthy v. State of A.P. AIR 1966 SC 38**, it was observed that in computing or calculating the period of limitation from a particular point, Section 12 enables the exclusion of a time from that period caused by an event that intervened between the commencement and termination of said period.

Section 13 of the Act lays down that the time during which the applicant has applied for leave to sue as 'pauper' shall be excluded. According to this Section, application must have been made for permission to sue as pauper in a suit and same is rejected. Such time which the applicant has spent in good faith for obtaining permission, shall be excluded in computing prescribed period upon payment of court fees.

Section 14 of the Act then provides: In computing the period of limitation prescribed for suit or application, the time during which the plaintiff has been prosecuting with due diligence another civil proceeding, should be excluded. The proceeding in such a case should have been founded upon the same cause of action and is prosecuted in good faith in court which from defect of jurisdiction or other cause of like nature, is to entertain it.

In Madhav Rao Narayan Rao Patwardhan V. R. K. Govind Bhanu AIR 1958 SC 767 It was observed that "the essential requisites for application of Section 14 of the Act are that the party seeking the benefit of Section 14 had to affirmatively show.

- i. that he had been prosecuting the previous suit with diligence
- ii. that the matter in issue in the previous suit and new suit are the same
- iii. that the previous suit was prosecuted in good faith, and
- iv. that the court was unable to entertain that suit on account of defect of jurisdiction or other cause of a like nature.

Then Section 15 of the Act provides-

1. In computing the period of limitation for application for the execution of a decree, the execution of which has been stayed by injunction or order, the time of the continuance of the injunction or order, the day on which it was issued or made, and the day on which it was withdrawn is to be excluded.
2. In computing the period of limitation for any suit of which notice has been given or for which the consent or sanction of the government or any other authority is required in accordance with the requirements of any law for the time being in force of such notice or as the case may be, the time for obtaining such consent or sanction is to be excluded.
3. In computing the period of limitation for any suit or application for execution of a decree by any receiver or 'interim receiver' appointed in proceedings for the adjudication of a person as or an insolvent or by any liquidator or provisional liquidator appointed in proceedings for the winding up of a company, the period beginning with the date of institution of such proceedings and ending with the date of institution of such proceedings and ending with the expiry of three months from the date of appointment of such receiver or liquidator, as the case may be, is to be excluded.
4. In computing the period of limitation for a suit for possession by a purchaser 'at a sale in execution of a decree' the time during which a proceeding to set aside the sale has been prosecuted is to be excluded.
5. In computing the period of limitation for any suit the time during which the defendant has absented from India and from the territories outside India under the administration of the Central Government is to be excluded (Section 15).

EFFECT OF "DEATH", "FRAUD", "MISTAKE" OR "ACKNOWLEDGEMENT IN WRITING"

Section 16 of Indian Limitation Act provides regarding the effect of death, in computing the limitation period. Section 16 says:

1. Where a person who would, if he were living, have right to institute a suit or right to make application, dies before such right accrues or where right to institute suit or make application assures only on the

death of a person, the period of limitation shall be computed from the time when there is a legal representative of deceased capable of instituting such suit or making such application.

2. Where a person against whom, if he were living, a right to institute suit or make application would have accrued, dies before such right accrues or where right to institute a suit or make application against any person accrues only on death of such person, the period of limitation shall be computed from the time when there is legal representative of deceased against whom plaintiff may institute such suit or make such application."

Section 17 of Indian Limitation Act deals with the effect of 'fraud' or 'mistake' on period of limitation prescribed by the Act.

According to **Section 17**: The limitation shall be computed from the time when the fraud became known to the person defrauded. Therefore, if any person by the exercise of fraud has kept away other persons from the knowledge that he has a right to file a suit, limitation will be computed from the time when such fraud became known to the person so defrauded.

Where any document necessary to establish such right has been fraudulently concealed from him or where the suit or application is for the relief from the consequence of a mistake, limitation shall be computed from the time when he first has the means of producing the document or compelling its production and in latter case when the plaintiff or the applicant has discovered the mistake or could have discovered it. It should be from the date of the discovery of the document.

The following are the essential conditions for getting the advantage of the above Section:

- 1) The cause of action of plaintiff has been concealed from him by fraud.
- 2) The fraud has been done by the defendant or a person through him or who claims under him.
- 3) The plaint is in time since the discovery of the fraud.

Exceptions: The following, however, are exceptions to the rule laid down above:

"Nothing in this Section shall enable any suit to be instituted, application to be made to recover or enforce and charge against or set aside any transaction affecting any property, which,

1. In the case of fraud, it has been purchased for valuable consideration by a person who was not a party to the fraud and did not at the time of the purchase know or have reason to believe that any fraud had been committed, or
2. in the case of mistake, it has been purchased for valuable consideration subsequently to the transaction in which the mistake was made by a person who did not know, or have reason to believe, that the mistake had been made, or
3. In the case of a concealed document, it has been purchased for valuable consideration by a person who was not a party to the concealment and, did not at the time of purchase know or have reason to believe that document has been concealed."

The main object of this Section to keep the right of a person to sue suspended so long as he is not made aware of the fraud to be committed against him. Such a period is excluded from the prescribed period of limitation. It is based on the principle that a person should not be deprived of his legal right to sue simply

because the period of limitation expired and he could not have knowledge of fraud done with him or likely to be done with him.

According to Section 17(1) where the execution of a decree or order within the period of limitation has been prevented by fraud or force of the judgment debtor, the court may on the application of judgment creditor made after the expiry of period of limitation, extend the period for the execution of decree or order. But such an application must be made by the judgment creditor within one year from the date of discovery of fraud or the cession of force as the case may be.

Valid Acknowledgement under Section 18: Section 18 of Indian Limitation Act lays down:

1. Where before the expiration of the prescribed period for a suit or application in respect of any property or right, an acknowledgement of liability in respect of such property or right has been made in writing signed by the party against whom such property or right is claimed, or by any person through whom he derives his title or liability, a fresh period of limitation shall be computed from the time when the acknowledgement was so signed.

2. Where the writing containing the acknowledgement is undated oral evidence may be given of the time when it was signed; but subject to the provisions of the Indian Evidence Act, 1872, oral evidence of its contents shall not be received."

Explanation (a) added to Section 18 says "an acknowledgement may be sufficient though it omits to specify the exact nature of the property or right, or avers that the time for payment, delivery, performance or enjoyment has not yet come or is accompanied by a refusal to pay, deliver, perform or permit to enjoy, or is coupled with a claim to set off, or is addressed to a person other than a person entitled, to the property or right."

So where prescribed period for suit or application in respect of some property or right has begun to run but has not expired, an acknowledgement in writing of such right has been made, a fresh period of limitation should be computed from the time when the acknowledgement was so signed.

In **Hindustan Apparel Industries v. Fair Deal Corp. New Delhi AIR 2000 Guj 261** it was held that "the payment of cheque which is dishonoured would amount to acknowledgement of debt and liability and by necessary consequence there will be saving of limitation as envisaged by Section 18 of Limitation Act. A cheque would prima facie amount to an admission of debt unless contrary intention has been expressed by the person issuing the cheque."

The principle on which Section 18 is based is that the bar of limitation should not be allowed to operate in cases in which the existence of a claim is acknowledged by persons who are under the liability.

In **Tilak Ram v. Nathu AIR 1967 SC 935** it was pointed out that the Section requires (i) an admission or acknowledgement (ii) such acknowledgement must be of a liability in respect of property or right (iii) it must be made before the expiry of period of limitation (iv) it should be in writing and signed by the party against whom such property or right is claimed.

Q. Discuss in short the law relating to legal disability provided under sections 6 to 9 of the Limitations Act, 1963.

Generally limitation begins to run from the date of cause of action. But the Indian Limitation Act itself provides certain exceptions to this general principle. Thus, in a case where the aggrieved party is suffering with some legal disability, the period of limitation does not run from the date of the accrual of the cause of action but runs from a subsequent date, on which the disability ceases. In this connection Sections 6, 7 and 8 of Indian Limitation Act are the counterpart of each other and they unitedly form one unit. The general rule regarding disability is provided by Section 6 which reads as under:

1. Where a person entitled to institute a suit or make an application for the execution of decree is at the time from which the prescribed period is to be reckoned, a minor or insane, or an idiot, he may institute the suit or make the application within the same period after the disability has ceased, as would otherwise have been allowed from the time specified there for in the third column of the schedule.
2. Where such person is, at the time from which the prescribed period is to be reckoned, affected by two such disabilities, or where, before his disability has ceased, he is affected by another disability, he may institute the suit or make application within the same period after both disabilities have ceased as would otherwise have been allowed from the time so specified.
3. Where the disability continues up to the death of that person his legal representative may institute the suit or make the application within the same period after the death, as would otherwise have been allowed from the time so specified.
4. Where the legal representative referred to in sub- section (3) is at the death of person to whom he represents, affected by any of such disabilities the rules contained in sub-sections (1) and (2) shall apply.
5. Where a person under disability, dies after the disability ceases but within the period allowed to him under this Section, his legal representative may institute the suit or make the application within the same period after the death, as would otherwise have been available to that person had he not died.

Explanation: for the purposes of this Section 'minor' includes a child in the womb." So Section 6 does not prevent running of limitation but only extends the period of limitation 'on the ground of disability of person entitled to sue or apply. Section 6 excuses an insane person, minor and an idiot to file a suit or make an application for the execution of a decree within the time prescribed by law and enables him to file the suit or make an application after the disability has ceased, counting the period of time from the date on which the disability ceased. If one disability supervenes on another disability or one disability is followed by another without leaving a gap the suit or application for execution may be filed after both disabilities have ceased to exist. If the disability or disabilities continue till the person's death then the legal representative of the deceased on whom the title devolves is allowed to file a suit or make an application for execution within the time allowed by law counting it from the death of the person entitled. The mere fact that there is a guardian for the person under disability does not deprive such person of the indulgence granted by Section 6.

In **Akhtar Hussain v. Qudrat Ali AIR 1923 Oudh. 31** it was observed that Section 6 of Limitation Act has no application in case of appeals. Legal disability is, inability to sue owing to minority, lunacy or idiocy. The effect of legal disability is that it extends the period of limitation but it does not prevent the period from running.

Sometimes a situation arises when one of the several persons jointly entitled to institute a suit or to execute a decree is under disability. In this connection Section 7 of Act says that if one of the several persons jointly entitled to institute a suit or make an application for the execution of a decree, is under

any such disability and a discharge can be given without the concurrence of such person, the time will run against all of them.

However, if such discharge cannot be given, time will not run as against any of them until one of them becomes capable of giving such discharge without the concurrence of the other or until the disability has ceased.

So Section 7 of Limitation Act would apply when the right to sue is joint irrespective of whether the substantive right is joint or not.

Section 8 of Indian Limitation Act makes it clear that Rules contained in Sections 6 and 7 are subject to the following conditions:

1. They cannot be applied to the suits to enforce rights of pre-emption.
2. They cannot be applied to any of the cases in which extension of period of limitation for more than three years from the cessation of disability or the death of a person as the case may be, is sought for.

CONTINUOUS RUNNING OF TIME (SECTION 9)

It is a fundamental principle of law of limitation that "Once the time has commenced to run it will not cease to do so by reason of any subsequent event." In other words, the time runs continuously and without any break or interruption until the entire prescribed period has run out and no disability or inability to sue occurring subsequently can stop it. This rule has been embodied in Section 9 of the Act in the following words:

"Where once time has begun to run, no subsequent disability or inability to institute a suit or make an application stops it."

Provided that, where letters of administration to the estate of a creditor have been granted to his debtor, the running of the period of a limitation for a suit to recover the debt shall be suspended while administration continues."

This Section applies not only to suits but to applications as well. This has not been expressly provided in the Section.

If at the date on which the cause of action arose the plaintiff was under no disability, or inability, then time will naturally begin to run against him because there is no reason why the ordinary law should not have full operation. Section 9 says that once time has begun to run, no subsequent disability or inability to sue can stop its running. This applies to a person himself as well as to his representatives-in-interest after his death. The Section contemplates a case of subsequent and not of initial disability, that is, it contemplates those cases where the disability occurred after the accrual of the cause of action; whereas cases of initial disability have been provided for by Section 6.

Disability or inability to sue: Disability has been defined as the want of legal qualification to act and inability of the physical person to act. Thus according to Calcutta High Court in **Pooran Chandra v. Sasson, AIR 1919 Cal. 1018**, disability is the state of being minor, insane or idiot, whereas illness, poverty etc. are instances of inability.

In **Union of India v. Tata Engineering and Locomotive Co. Ltd. AIR 1989 Pat. 272** it was observed "true it is that in terms of Section 9 when time has begun to run, no subsequent disability or inability to institute

a suit or make an application stops it but Section 9 does not provide for a computation of period of limitation."

Exceptions: The principle of Section 9 is strictly applied and no exceptions other than those which the Act itself prescribes can be recognised. Thus the running of time is suspended in following eight cases-

1. The proviso to Section 9 contains exception to the general rule that once time begins to run, no subsequent disability or inability to sue can stop it. The proviso lays down that when administration of an estate has been given to a debtor of the deceased, no time will run against such a debtor until the administration of estate which has been entrusted to him has been finished. In such cases, the law prevents the duty of properly administering the estate to come into conflict with the right of the person to sue for the debt, the hand to give and the hand to receive is the same.
2. The time spent in obtaining a copy of the decree, sentence or order appealed from or sought to be reviewed shall be excluded while computing the period of limitation prescribed for an appeal or an application for leave to application and an application for review of judgment. In the same way the time spent in obtaining the copy of the award shall be excluded, while computing the period of limitation to file an application to set aside an award (Section 12).
3. The time taken for prosecuting an application for leave is to be excluded if leave is necessary while computing the period of limitation for a suit or appeal (Section 13).
4. When the plaintiff has been prosecuting with due diligence another same proceedings the time spent in it shall be excluded while computing the period of limitation (Section 14).
5. When an injunction order has been obtained to stay the institution of suit, the time spent in obtaining injunction or order shall be excluded while computing the period of limitation [Section 15(1)].
6. When notice is served before the institution of a suit, the limitation shall be suspended during the period of notice (Section 15(1)).
7. The period of limitation shall be suspended during the time for which the proceedings to set aside the sale have been prosecuted in a suit for possession by purchaser at an execution sale [Section 15(4)].
8. If the defendant is absent from India or in the territories beyond India, under the administration of the Central Government, the time up to which he has been absent shall be excluded while computing the period of limitation (Section 15(5)).

Q. When even after period of limitation as prescribed under the Limitation Act 1963, the court may allow an application filed before it. Support your answer with reasons.

The Code of Civil Procedure confers a right to appeal, but does not prescribe a period of limitation for filing an appeal. The Limitation Act, 1963, however, provides the period of filing up appeals. It states that the appeals against a decree or order can be filed in a High Court within ninety days and in any other court in thirty days from the date of the decree or order appealed against.

It is for general welfare that a period be put on litigation. Further, it is a general principle of law that law is made to protect only diligent and vigilant people. Equity aids the vigilant and not the indolent. Law will not protect people who are careless about their rights. (Vigilantibus non dormientibus jura subveniunt). Moreover, there should be certainty in law and matters cannot be kept in suspense indefinitely. It is,

therefore, provided that Courts of Law cannot be approached beyond fixed period. In civil matters, the limit is provided in Limitation Act, 1963.

The 'Law of Limitation' prescribes the time-limit for different suits within, which an aggrieved person can approach the court for redress or justice. The suit, if filed after the exploration of time-limit, is struck by the law of limitation. It's basically meant to protect the long and established user and to indirectly punish persons who go into a long slumber over their rights.

The statutory law was established in stages. The very first Limitation Act was enacted for all courts in India in 1859. And finally took the form of Limitation Act in 1963.

A citizen is not expected to master the various provisions which provide for limitation in different matters but certain basic knowledge in this regard is necessary. For instance, Section 12 of the Limitation Act lays down certain guidelines regarding computation of limitation period. It says that in computing the period of limitation for any suit, appeal or application, the day from which such period is to be reckoned, shall be excluded.

Further, the day on which the judgment complained of was pronounced and the time requisite for obtaining a copy of the decree, sentence or order appealed from shall be excluded. However, any time taken by the court to prepare the decree or order before an application for a copy thereof is made shall not be excluded.

Section 14 of the act, similarly, says that in computing the period of limitation for any suit, the time during which the plaintiff has been prosecuting in civil proceedings, whether in a court of first instance or of appeal or revision against the defendant shall be excluded where the proceedings relate to the same matter in a court which is unable to entertain it on account of defect of jurisdiction or other cause of a like nature.

'Sufficient Cause': It is necessary to get the benefit of this Section that the court must be satisfied with the 'sufficient cause' for not preferring the appeal or application. The term 'sufficient cause' used here has not been defined in this Act. Its meaning, therefore, can be accepted as a cause, which is beyond the control of the party invoking the aid of this Section. This term 'sufficient cause' must of course, be given a liberal meaning so as to advance substantial justice when any negligence or inaction or want of bona fide is 'not imputable to the appellant. The sufficient cause can be determined from the facts and circumstances of a particular case.

So any appeal or application (other than one made under Order XXI of C.P.C.) may be admitted after prescribed period if appellant or applicant as the case may be shows "sufficient cause" for not preferring appeal or making application within the prescribed period. But mere proof of existence of "Sufficient Cause" for not filing the proceeding within the prescribed period does not, under the section, ipso facto compel the Court to extend the time. The court has a discretion to admit or refuse the proceeding even if sufficient cause is shown.

Discretion is conferred on the Court before which an application for condoning delay is made and if the Court after keeping in view relevant principles exercises its discretion granting relief unless it is shown to be manifestly unjust or perverse, the Supreme Court would be loathe to interfere with it."

Explanation to Section 5 says that "the fact that the appellant or the applicant was misled by any order practice or judgment of the High Court in ascertaining or computing the prescribed period may be

"sufficient cause" within the meaning of this Section ", The following are some examples of what is and what is not "Sufficient Cause":

1. Illness: Illness is considered as 'sufficient cause' to get benefit of Section 5, but mere plea of illness is not sufficient cause for not filing proceeding in time unless it is shown that the appellant or applicant was utterly disabled to attend to any duty.

2. Imprisonment: A person can be given the benefit of Section 5 if he is undergoing imprisonment due to some criminal act. The time spent by him in the jail may be deducted from the prescribed period of time.

3. Mistaken Legal Advice: A mistaken advice given by a legal practitioner may in circumstances of particular case give rise to 'Sufficient Cause' within the meaning of Section 5. In **State of WB. v. The Administrator, Howrah Municipality, AIR 1972 SC 749**, it was held that if a party had acted in a particular manner on a wrong advice given by his legal advisor, he cannot be held guilty for negligence so as to disentitle the party to plead sufficient cause under Section 5 provided that no negligence, nor inaction nor want of bonafides is imputable to a party.

4. Illiteracy: The fact that appellant was illiterate is not sufficient reason to condone the delay.

5. Delay in obtaining copies: When a delay is caused:

1) in obtaining a copy of the order or decree of a court and such delay was caused by the officer of the court.

2) by the court itself in issuing orders.

3) due to the method wrongly adopted in procuring the copy of the decree or order of the court.

Such delay shall be deemed as sufficient cause for granting benefit of Section 5 of this Act.

The power given to the courts under Section 5 above is discretionary yet it has to be exercised in a judicial manner keeping in view the special circumstances of each case.

In **Collector, Land Acquisition v. Mst. Katiji, AIR 1987 S. C. 1353**, their Lordships of the Supreme Court laid down the following guiding principles:

1. Ordinarily a litigant does not stand to benefit by lodging an appeal late.

2. Refusing to condone delay can result in a meritorious matter being thrown out at the very threshold and cause of justice being defeated. As against this when delay is condoned the highest that can happen is that a cause would be decided on merits after hearing the parties.

3. "Every day's delay must be explained" does not mean that a pedantic approach should be made. Why not every hour's delay, every second's delay? The doctrine must be applied in a rational commonsense pragmatic manner.

4. When substantial justice and technical considerations are pitted against each other, cause of substantial justice deserves to be preferred for the other side cannot claim to have vested right in injustice being done of a non-deliberate delay.

5. There is no presumption that delay is occasioned deliberately, or on account of culpable negligence; or on account of mala fides. A litigant does not stand to benefit by resorting to delay.

6. It must be grasped that judiciary is-respected not on account of its power to legalize injustice on technical grounds but because it is capable of removing injustice and it is expected to do so.

It was pointed out that the Courts should adopt liberal approach in the matter of condonation of delay keeping in view the above principles.

Q. Write a note on the “Law of Prescription”. What is the difference between “The Law of Prescription” and “The Law of Limitation”?

Section 35 and 25 of the Limitation Act contain the law for the acquisition of the easement by prescriptions and are applicable to places to which the Indian Easements Act does not apply (e.g., Madras, C.P., Coorg, Bombay and U.P.).

Nothing is an interruption within the meaning of this section, unless where there is an actual discontinuance of the possession or enjoyment by reason of an obstruction by the act of some person other than the claimant, and unless such obstruction is submitted to or acquiesced in for one year after claimant has notice thereof and of the person making or authorising the same to be made.

Section 25 of the Limitation Act is concerned only with the acquisition of the easement and does not purport to measure the extent of the right or to indicate the remedy by which a disturbance of the right is to be vindicated.

The claim of public right over a public land is not a claim of easement governed by the Section 25 of the Limitation Act. Section 25 does not apply to natural rights. In **R. Pandey v. S. Pandey, (AIR 1963 Pat. 76)**, it has been held that the right to drain off rain water according to the lie of the land in a natural way does not attract the Section 25. In **Manindra v. Balaram, (AIR 1973 Cal. 145)**, it has been held that customary right of way for all the villagers is not a right which can be acquired by prescription under Section 25.

The Limitation Act places light and air on the same footing. The only amount of light for a dwelling house which can be claimed by prescription or by length of enjoyment without an actual grant is such an amount as is reasonably necessary for the convenient and comfortable habitation of the house. The owner does not obtain by his easement a right to all the light he has enjoyed. He obtains a right to so much of it as will suffice for the ordinary purposes of inhabiting or business according to the ordinary notions of mankind, having regard to the locality and surroundings. In

Jotindra v. Probodh Kumar Dutta, (AIR 1932 Cal. 249), it has been held that if for 20 years light and air has come to the plaintiffs building in a defined channel by the same access, the conditions of the section are fulfilled.

Difference between prescription and limitation

The Indian Limitation Act deals with the Law of Prescription as well as the Law Limitation. A Law of Prescription prescribes the period at the expiry of which not only the judicial remedy is barred but a substantive right is acquired or extinguished.

A Law of **Limitation** limits the time after which a suit or other proceeding cannot be maintained in a Court of Justice. It simply bars the judicial remedy but it neither affects the extra judicial remedies nor the substantive right itself.

Prescription is the acquisition of Title by possession of property for the prescribed period provided that possession was neither forcible nor clandestine (hidden), nor permissive. Such possession acquires its title chiefly on account of the fact that those who had interest in the property have allowed their rights to get barred by not caring to pursue their remedies within the time allowed by law to enforce those remedies.

Limitation as affecting the remedy comes under the head of adjective law. The Law of Prescription on the other hand as affecting the substance of the right itself comes under the department of substantive law.

The Indian Limitation Act on the one hand limits the time at the expiration of which civil rights cannot be enforced on the other hand it prescribes the length of use by which a right to property may be acquired.

Limitation is negative in its operation depriving a person of a power which he possessed before. Prescription, on the other hand, is affirmative conferring on a person right to that which he hitherto enjoyed in fact but not in right (e.g., a trespasser is an owner in fact and not in Law).

